

MASTER LEASE

THIS MASTER LEASE (this "Lease") is made as of _____, 2014 (the "Effective Date"), by and between _____, a Delaware _____ ("Lessor"), and _____, a _____ ("Lessee")¹.

WITNESSETH:

THAT, in consideration of the mutual covenants and agreements herein contained, Lessor and Lessee hereby covenant and agree as follows:

1. **Certain Defined Terms.** The following terms shall have the following meanings for all purposes of this Lease:

"ADA" means the Americans with Disabilities Act of 1990, as such act may be amended from time to time.

"Additional Rental" has the meaning set forth in Section 5.C.

"Adjustment Date" means the first day of the month following the month in which the first anniversary of the Effective Date occurs, and every anniversary thereafter during the Lease Term (including any applicable extension periods pursuant to Section 28).

"Affiliate" means any Person which directly or indirectly controls, is under common control with, or is controlled by any other Person. For purposes of this definition, "controls", "under common control with" and "controlled by" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of such Person, whether through the ownership of voting securities or otherwise.

"Anti-Money Laundering Laws" means all applicable laws, regulations and government guidance on the prevention and detection of money laundering, including 18 U.S.C. § § 1956 and 1957, and the BSA.

"Applicable Regulations" means all applicable statutes, regulations, rules, ordinances, codes, licenses, permits, orders and approvals of each Governmental Authority having jurisdiction over any of the Properties, including, without limitation, all health, building, fire, safety and other codes, ordinances and requirements, all applicable standards of the National Board of Fire Underwriters and the ADA and all policies or rules of common law, in each case, as amended, and any judicial or administrative interpretation thereof, including any judicial order, consent, decree or judgment applicable to any of the Lessee Parties.

"Applicable Rent Reduction Percentage" means, with respect to any Property, a fraction, the numerator of which shall be the original purchase price allocated to such Property by Lessor, and the denominator of which shall be the original purchase price of all of the Properties.

"Base Annual Rental" means US\$«Annual_Rent», subject to the increases provided for in Section 5.B.

"Base Monthly Rental" means an amount equal to 1/12 of the applicable Base Annual Rental.

"BSA" means the Bank Secrecy Act (31 U.S.C. § § 5311 et. seq.), and its implementing regulations, Title 31 Part 103 of the U.S. Code of Federal Regulations.

"Business Day" means any day on which banks are open for business other than a Saturday, Sunday or a legal holiday, ending at 5:00 P.M. Phoenix, Arizona time.

¹ We will need to know which entity will be the Lessee and see an org chart in order to determine whether a lease guaranty should be provided.

“Change of Control” means a change in control of any of the Lessee Parties resulting from direct or indirect transfers of voting stock or partnership, membership or other ownership interests, whether in one or a series of transactions. For purposes of this definition, “control” means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of the applicable Lessee Party.

“Code” means Title 11 of the United States Code, 11 U.S.C. Sec. 101 et seq., as amended.

“Consent-Needed Transaction” has the meaning set forth in Section 27.B.

“CPI” means the Consumer Price Index for All Urban Consumers (CPI-U) for the U.S. City Average for All Items (1982-84=100), published by the Bureau of Labor Statistics of the U.S. Department of Labor. If the CPI is not published for any month during the Lease Term, Lessor, in its reasonable discretion, may substitute a comparable index which reflects the purchasing power of the consumer dollar and is published by the Bureau of Labor Statistics of the U.S. Department of Labor. If such an index is not published by the Bureau of Labor Statistics, Lessor, in its reasonable discretion, shall select a comparable index published by a nationally recognized responsible financial periodical.

“Credit Agreement” means an agreement pursuant to which a third-party lender provides financing to any Lessee Party.

“Default Rate” means the lesser of the highest rate for which the undersigned may legally contract or the rate of 14% per annum.

“EBITDA” means earnings for the applicable entity during the applicable period, before taking into account charges for interest, taxes, depreciation or amortization, all as calculated in accordance with GAAP.

“Effective Date” has the meaning set forth in the Preamble.

“Entity” means any entity that is not a natural person.

“Environmental Condition” means any condition with respect to soil, surface waters, groundwaters, land, stream sediments, surface or subsurface strata, ambient air and any environmental medium comprising or surrounding any of the Properties, whether or not yet discovered, which would reasonably be expected to or does result in any material damage, loss, cost, expense, claim, demand, order or liability to or against any of the Lessee Parties, Lessor or Lender by any third party (including, without limitation, any Governmental Authority), including, without limitation, any condition resulting from the operation of business at any of the Properties and/or the operation of the business of any other property owner or operator in the vicinity of the Properties and/or any activity or operation formerly conducted by any person or entity on or off any of the Properties.

“Environmental Laws” means any present and future federal, state and local laws, statutes, ordinances, rules, regulations, orders, injunctions and decrees of Governmental Authorities and common law, relating to Hazardous Materials and/or the protection of the environment by reason of a Release or a Threatened Release of Hazardous Materials or relating to liability for or costs of Remediation or prevention of Releases. “Environmental Laws” includes, but is not limited to, the following statutes, as amended, any successor thereto, and any regulations, rulings, orders or decrees promulgated pursuant thereto: the Comprehensive Environmental Response, Compensation and Liability Act, 42 U.S.C. §§ 9601 et seq.; the Emergency Planning and Community Right-to-Know Act, 42 U.S.C. § 11001 et seq.; the Hazardous Materials Transportation Act, 49 U.S.C. § 5101 et seq.; the Resource Conservation and Recovery Act (including but not limited to Subtitle I relating to USTs), 42 U.S.C. §§ 6901 et seq.; the Clean Water Act, 33 U.S.C. §§ 1251 et seq.; the Clean Air Act, 42 U.S.C. §§ 7401 et seq.; the Toxic Substances Control Act, 15 U.S.C. § 2601 et seq.; the Safe Drinking Water Act, 42 U.S.C. §§ 300f et seq.; the Occupational Safety and Health Act, 29 U.S.C. § 651 et seq.; the Federal Insecticide, Fungicide and Rodenticide Act, 7 U.S.C. §§ 136 et seq.; the Endangered Species Act, 16 U.S.C. §§ 1531 et seq. and the National Environmental Policy Act, 42 U.S.C. § 4321 et seq. “Environmental Laws” also includes, but is not limited to, any present and future federal, state and local laws, statutes, ordinances, rules, regulations, orders, injunctions and decrees of Governmental Authorities and common law: conditioning transfer of property upon a negative declaration or other

approval of a Governmental Authority of the environmental condition of the property; requiring notification or disclosure of Releases or other environmental condition of any of the Properties to any Governmental Authority or other person or entity, whether or not in connection with transfer of title to or interest in property; imposing conditions or requirements relating to Hazardous Materials in connection with permits or other authorizations required by Governmental Authorities; relating to the handling and disposal of Hazardous Materials; relating to nuisance, trespass or other causes of action related to Hazardous Materials; and relating to wrongful death, personal injury, or property or other damage in connection with the physical condition or use of any of the Properties by reason of the presence of Hazardous Materials in, on, under or above any of the Properties.

“Environmental Liens” has the meaning set forth in Section 6.L(ix).

“Environmental Reports” means those certain Phase I environmental site assessments of the Properties prepared by EMG, in anticipation of Lessor’s acquisition of the Properties and the execution of this Lease.

“Existing Environmental Conditions” means those Environmental Conditions existing or occurring on or prior to the Effective Date, including without limitation those set forth in the Environmental Reports, except to the extent that the actions of Lessee or any Lessee Party have contributed to or aggravated any such Environmental Condition.

“Event of Default” has the meaning set forth in Section 24.

“FCCR” means, with respect to the 12-month period of time immediately preceding the date of determination, the ratio, calculated for Lessee and its consolidated subsidiaries for such time period, each as determined in accordance with GAAP (except as otherwise provided herein), of: (a) (i) EBITDA, (ii) any reasonable advisory, management and transaction fees, as well as indemnities and out-of-pocket costs and expenses, paid (or payable but accrued) to Golden Gate Private Equity, Inc., or any affiliate of Golden Gate Private Equity, Inc., (iii) any transaction related expenses, and (iv) operating lease expenses, plus or minus other non-cash charges or non-cash items or, as reasonably determined by Lessee, any extraordinary or non-recurring items; to (b) the sum, without duplication, of (i) operating lease expenses, (ii) scheduled principal payments on long term debt (other than balloon payments due at maturity), and (iii) interest expense (excluding non-cash interest expense and amortization of non-cash financing expenses).

“GAAP” means generally accepted accounting principles consistently applied.

“Ground Lease Estoppel Certificate and Consents” means, collectively, the estoppel certificate delivered from each Ground Lessor or Lessor’s predecessor-in-interest under the Ground Lease and, if required, the consent delivered from each Ground Lessor, in connection with the acquisition of the Properties by Lessor and/or the execution and delivery of this Lease.]

“Ground Leases” means, collectively, those ground leases relating to the Properties and all modifications, amendments and supplements thereto disclosed in the Ground Lease Estoppel Certificate and Consents delivered with respect thereto, and all modifications, amendments and supplements thereto which are executed and delivered after the Effective Date.]

“Ground Lessors” means the lessors under the Ground Leases.]

“Governmental Authority” means any governmental authority, agency, department, commission, bureau, board, instrumentality, court or quasi-governmental authority having jurisdiction or supervisory or regulatory authority over any of the Properties or any of the Lessee Parties.

“Hazardous Materials” means (a) any toxic substance or hazardous waste, substance or solid waste material, or any pollutant or contaminant; (b) radon gas, asbestos in any form which is or could become friable, urea formaldehyde foam insulation, transformers or other equipment containing dielectric fluid having levels of polychlorinated biphenyls in excess of applicable standards established by any Governmental Authority, or any petroleum product or additive; (c) any substance, gas, material or chemical which is now or hereafter defined as or

included in the definition of “hazardous substances,” “toxic substances,” “hazardous materials,” “hazardous wastes,” “regulated substances” under any Environmental Laws; and (d) any other chemical, material, gas or substance the exposure to or release of which is prohibited, limited or regulated by any Governmental Authority that asserts or may assert jurisdiction over any of the Properties or the operations or activity at any of the Properties.

“*Indemnified Parties*” means Lessor and its directors, officers, shareholders, trustees, beneficial owners, partners and members, any directors, officers, shareholders, trustees, beneficial owners, partners, members of any shareholders, beneficial owners, partners or members of Lessor, and all employees, agents, servants, representatives, contractors, subcontractors, affiliates, subsidiaries, participants, successors and assigns of any of the foregoing, including, but not limited to, any successors by merger, consolidation or acquisition of all or a substantial portion of the assets and business of Lessor, as applicable.

“*Leasehold Mortgage*” means a leasehold mortgage with respect to this Lease to be granted by Lessee to Lessee Lender as contemplated by Section 23.

“*Lease Term*” shall have the meaning described in Section 4.

“*Lender*” means any lender who has made a loan secured by Lessor’s interest in any of the Properties, and any servicer of any loan secured by Lessor’s interest in any of the Properties.

“*Lessee Lender*” means any lender, or the administrative agent on behalf of such lender, under a Credit Agreement.

“*Lessee Parties*” means Lessee.

“*Lessor Entities*” means, collectively, Lessor (including any predecessor-in-interest to Lessor) and any Affiliate of Lessor (including any Affiliate of any predecessor-in-interest to Lessor).

“*Lessor’s Subordination and Consent*” shall have the meaning described in Section 31.

“*Loan Documents*” means, collectively, any loan agreement executed by and between Lender and Lessor, all promissory notes, mortgages, deeds of trust, deeds to secure debt, and all other documents, instruments and agreements executed in connection therewith or contemplated thereby, all as amended, modified and supplemented and any and all replacements or substitutions thereof.

“*Losses*” means any and all claims, suits, liabilities (including, without limitation, strict liabilities), actions, proceedings, obligations, debts, damages, losses, costs, expenses, diminutions in value, fines, penalties, charges, fees, expenses, judgments, awards, amounts paid in settlement and damages of whatever kind or nature (including, without limitation, reasonable attorneys’ fees, court costs and other costs of defense).

“*Material Adverse Effect*” means a material adverse effect on Lessee’s ability to perform its obligations under this Lease.

“*Memorandum*” means the memorandum of master lease dated as of the Effective Date between Lessor and Lessee with respect to the Properties. A duplicate original Memorandum will be executed and recorded in the applicable real property records for each Property. Each Memorandum will contain exhibits with the addresses and store identification numbers for all of the Properties and the legal description for the applicable Property.

“*OFAC Laws and Regulations*” means Executive Order 13224 issued by the President of the United States of America, the Terrorism Sanctions Regulations (Title 31 Part 595 of the U.S. Code of Federal Regulations), the Terrorism List Governments Sanctions Regulations (Title 31 Part 596 of the U.S. Code of Federal Regulations), the Foreign Terrorist Organizations Sanctions Regulations (Title 31 Part 597 of the U.S. Code of Federal Regulations), and the Cuban Assets Control Regulations (Title 31 Part 515 of the U.S. Code of Federal Regulations), and all other present and future federal, state and local laws, ordinances, regulations, policies, lists (including, without limitation, the Specially Designated Nationals and Blocked Persons List) and any other requirements of any Governmental

Authority (including, without limitation, the United States Department of the Treasury Office of Foreign Assets Control) addressing, relating to, or attempting to eliminate, terrorist acts and acts of war, each as hereafter supplemented, amended or modified from time to time, and the present and future rules, regulations and guidance documents promulgated under any of the foregoing, or under similar laws, ordinances, regulations, policies or requirements of other states or localities.

"Original Lessee" has the meaning set forth in Section 27.E.

"Participation" means one or more grants by Lender or any Affiliate of Lender to a third party of a participating interest in notes evidencing obligations to repay secured or unsecured loans owned by Lender or any Affiliate of Lender or any or all servicing rights with respect thereto.

"Permitted Amounts" means, with respect to any given level of Hazardous Materials, that level or quantity of Hazardous Materials in any form or combination of forms the presence, use, storage, release or handling of which does not constitute a violation of any Environmental Laws and is customarily employed in the ordinary course of, or associated with, similar businesses located in the states in which the Properties are located.

"Permitted Concept" means (a) a Red Lobster® restaurant, (b) any other nationally or regionally recognized brand restaurant, (c) any other restaurant concept operated by Lessee, or (d) any non-restaurant, national retail concept, provided that the Lessee, assignee or subtenant operating such concept at the applicable Property has a long term issuer corporate credit rating from Standard & Poor's or Moody's Investor Services, Inc. of at least "BB-" or the equivalent.

"Permitted Exceptions" means those recorded easements, restrictions, liens and encumbrances set forth as exceptions in the title insurance policies issued to Lessor in connection with its acquisition of the Properties, together with such easements, restrictions, liens and encumbrances to which Lessor gives its written consent during the Lease Term.

"Permitted Transferee" means a

(i) Qualified Financial Buyer that satisfies the following conditions:

(a) has an FCCR of not less than 1.25:1 for the immediately preceding twelve-month period, determined on a pro forma basis giving effect to the proposed assignment or transfer as if such assignment or transfer was consummated on the first day of such twelve-month period;

(b) has made a cash equity investment of not less than \$200,000,000.00 immediately after giving effect to the proposed assignment or transfer; and

(c) following the proposed assignment or transfer, the Properties will be managed and operated either by substantially the same management team that managed and operated the Properties prior to such assignment or transfer or a manager and operator that has been engaged in the business of management or operation of not less than fifty (50) nationally or regionally recognized restaurants for at least five (5) years; or

(ii) Qualified Strategic Buyer that satisfies the following conditions:

(a) has an FCCR of not less than 1.25:1 for the immediately preceding twelve-month period, determined on a pro forma basis giving effect to the proposed assignment or transfer as if such assignment or transfer was consummated on the first day of such twelve-month period; and

(b) has either (x) made a cash equity investment of not less than \$200,000,000.00 immediately after giving effect to the proposed assignment or transfer, or (y) a long term issuer corporate credit rating from Standard & Poor's or Moody's Investor Services, Inc. of at least "B" or the equivalent.

“Person” means any individual, corporation, partnership, limited liability company, trust, unincorporated organization, Governmental Authority or any other form of entity.

“Personal Property” means all personal property, trade fixtures, equipment (including dishwashing equipment) and vehicles owned or leased by Lessee located at any of the Properties other than the machinery, equipment and systems necessary for the operation of the improvements on any of the Properties that are “fixtures” pursuant to applicable law, including, but not limited to, as applicable, any heating, ventilation and air-conditioning equipment, electrical, gas and power apparatus, windows, toilets, ducts and compressors, exhaust systems and water heaters and related machinery, pipes, pumps, tanks, conduits, switchboards, plumbing, fire sprinklers and fire suppression equipment, lighting including emergency lighting, security cameras and systems, paging and sound systems, walk-in coolers, walk-in refrigerators and walk-in freezers, and grill hoods, built-in sinks, built-in shelving, awnings, and supports for signs.

“Properties” means, collectively, the parcels of real estate described by address in Exhibit A attached hereto and legally described in Exhibit A-1, all rights, privileges and appurtenances associated therewith, and all buildings, fixtures and other improvements now or hereafter located on such real estate (whether or not affixed to such real estate), but specifically excluding any Personal Property.

“Property” means any one of the Properties.

“Qualified Financial Buyer” means any private equity or private investment firm or fund, sovereign wealth fund, investment company, Qualified Institutional Buyer (within the meaning of Rule 144A promulgated under the Securities Exchange Act of 1933), Qualified Purchaser (as defined under the Investment Company Act of 1940), insurance company, pension fund, pension fund advisor, any entity controlled by a Governmental Authority or other financial or institutional investor, in each case, where such entity (or group of entities, as applicable) and its (or their, as applicable) affiliates have cumulative assets under management or equity capital under management of at least \$2,000,000,000.

“Qualified Strategic Buyer” means an ultimate parent company (other than a REIT or a subsidiary of a REIT) that (i) has been engaged in the business of operation or management of not less than fifty (50) nationally or regionally recognized restaurants for at least five (5) years.

“Related Lease” means any master lease or lease entered into on or about the date hereof between any Affiliate of Lessor, as landlord, and Lessee or any Affiliate of Lessee, as tenant, as the same may be amended from time to time. For purposes of the foregoing, (i) during any period of time that the landlord under any such master lease or lease is not an Affiliate of Lessor or the lessee under any such master lease or lease is not an Affiliate of Lessee, such master lease or lease, as applicable, shall not be deemed to be a Related Lease, and (ii) a Person shall not be considered an Affiliate of Lessor during any period of time that the Person is beneficially owned by a different REIT fund than the REIT fund that then beneficially owns Lessor.

“Release” means any presence, release, deposit, discharge, emission, leaking, spilling, seeping, migrating, injecting, pumping, pouring, emptying, escaping, dumping, disposing or other movement of Hazardous Materials.

“Remediation” means any response, remedial, removal, or corrective action, any activity to clean up, detoxify, decontaminate, contain or otherwise remediate any Hazardous Materials to the extent required by any Environmental Law or any Governmental Authority, any actions to prevent, cure or mitigate any Release to the extent required by any Environmental Laws or with any permits issued pursuant thereto, any inspection, investigation, study, monitoring, assessment, audit, sampling and testing, laboratory or other analysis, or any evaluation relating to any Hazardous Materials to the extent required by Environmental Law.

“Rent to Sales Ratio” means, with respect to the 12-month period of time immediately preceding the date of determination, the ratio of: (a) Base Annual Rental payable on the Effective Date; to (b) the aggregate gross sales of the Properties for such time period, excluding any Properties that have been subleased by Lessee.

“Securitization” means one or more sales, dispositions, transfers or assignments by Lender or any Affiliate of Lender to a special purpose corporation, trust or other entity identified by Lender or any Affiliate of Lender of notes evidencing obligations to repay secured or unsecured loans owned by Lender or any Affiliate of Lender (and, to the extent applicable, the subsequent sale, transfer or assignment of such notes to another special purpose corporation, trust or other entity identified by Lender or any Affiliate of Lender), and the issuance of bonds, certificates, notes or other instruments evidencing interests in pools of such loans, whether in connection with a permanent asset securitization or a sale of loans in anticipation of a permanent asset securitization. Each Securitization shall be undertaken in accordance with all requirements which may be imposed by the investors or the rating agencies involved in each such sale, disposition, transfer or assignment or which may be imposed by applicable securities, tax or other laws or regulations.

“Threatened Release” means a substantial likelihood of a Release which requires action to prevent or mitigate damage to the soil, surface waters, groundwaters, land, stream sediments, surface or subsurface strata, ambient air or any other environmental medium comprising or surrounding any of the Properties which may result from such Release.

“Transfer” means one or more sales, transfers or assignments by Lender or any Affiliate of Lender to a third party of notes evidencing obligations to repay secured or unsecured loans owned by Lender or any Affiliate of Lender or any or all servicing rights with respect thereto.

“U.S. Publicly-Traded Entity” is an Entity whose securities are listed on a national securities exchange or quoted on an automated quotation system in the U.S. or a wholly-owned subsidiary of such an Entity.

2. ***Demise of Properties.*** In consideration of the rentals and other sums to be paid by Lessee and of the other terms, covenants and conditions on Lessee’s part to be kept and performed, Lessor hereby leases to Lessee, and Lessee hereby takes and hires, the Properties. Except as otherwise specifically provided in Section 20 below, the Properties are leased to Lessee “AS IS” and “WHERE IS” without representation or warranty by Lessor and subject to the rights of parties in possession, to the existing state of title, any state of facts which an accurate survey or physical inspection might reveal, and all Applicable Regulations now or hereafter in effect. Lessee has examined each of the Properties and title to each of the Properties and has found all of the same satisfactory for all of Lessee’s purposes. [Lessee acknowledges and agrees that the Properties are ground leased by Lessor from third-parties and, notwithstanding anything to the contrary contained in this Lease, this Lease is a sublease of the Properties. Lessee shall be responsible for complying with all of the obligations of the lessee under the Ground Leases, including, without limitation, the payment of all rent and other sums required to be paid by the lessee under the Ground Leases.]

3. ***Master Lease Characterization.*** A. Lessor and Lessee intend that:

(i) this Lease constitutes a single master lease of all, but not less than all, of the Properties and that Lessor and Lessee have executed and delivered this Lease with the understanding that this Lease constitutes a unitary, unseverable instrument pertaining to all, but not less than all, of the Properties, and that neither this Lease nor the duties, obligations or rights of Lessee may be allocated or otherwise divided among the Properties by Lessee;

(ii) this Lease is a “true lease” and not a financing lease, capital lease, mortgage, equitable mortgage, deed of trust, trust agreement, security agreement or other financing or trust arrangement, and the economic realities of this Lease are those of a true lease; and

(ii) the business relationship created by this Lease and any related documents is solely that of a long-term commercial lease between landlord and tenant and has been entered into by both parties in reliance upon the economic and legal bargains contained herein.

B. Lessor and Lessee acknowledge and agree that the Lease Term, including any term extensions provided for in this Lease, is less than the remaining economic life of each of the Properties.

C. Lessor and Lessee each waive any claim or defense based upon the characterization of this Lease as anything other than a true lease and irrevocably waive any claim or defense which asserts that this Lease is anything other than a true lease. Lessor and Lessee covenant and agree that they will not assert that this Lease is anything but a true lease. Lessor and Lessee each stipulate and agree not to challenge the validity, enforceability or characterization of the lease of the Properties as a true lease and further stipulate and agree that nothing contained in this Lease creates or is intended to create a joint venture, partnership (either de jure or de facto), equitable mortgage, trust, financing device or arrangement, security interest or the like. Lessor and Lessee each shall support the intent of the parties that the lease of the Properties pursuant to this Lease is a true lease and does not create a joint venture, partnership (either de jure or de facto), equitable mortgage, trust, financing device or arrangement, security interest or the like, if, and to the extent that, any challenge occurs.

D. Lessor and Lessee each waive any claim or defense based upon the characterization of this Lease as anything other than a master lease of all of the Properties and irrevocably waive any claim or defense which asserts that this Lease is anything other than a master lease. Lessor and Lessee covenant and agree that they will not assert that this Lease is anything but a unitary, unseverable instrument pertaining to the lease of all, but not less than all, of the Properties. Lessor and Lessee stipulate and agree not to challenge the validity, enforceability or characterization of the lease of the Properties as a unitary, unseverable instrument pertaining to the lease of all, but not less than all, of the Properties. Lessor and Lessee each shall support the intent of the parties that this Lease is a unitary, unseverable instrument pertaining to the lease of all, but not less than all, of the Properties, if, and to the extent that, any challenge occurs.

E. Lessee represents and warrants to Lessor that (i) the Base Annual Rental is the fair market value for the use of the Properties and was agreed to by Lessor and Lessee on that basis, and (ii) the execution, delivery and performance by Lessee of this Lease does not constitute a transfer of all or any part of the Properties.

F. The expressions of intent, the waivers, the representations and warranties, the covenants, the agreements and the stipulations set forth in this Section are a material inducement to Lessor entering into this Lease.

4. **Lease Term.** The Lease Term for all of the Properties shall commence as of the Effective Date and shall expire on [last day of month in which the Effective Date occurs], [2039]² (the "Initial Lease Term") unless terminated sooner as provided in this Lease and as may be extended for four (4) periods of five (5) years each as set forth in Section 28 below. The time period during which this Lease shall actually be in effect is referred to herein as the "Lease Term."

5. ***Rental and Other Payments.***

A. If the Effective Date is a date other than the first day of the month, Lessee shall pay Lessor on the Effective Date the Base Monthly Rental prorated on the basis of the ratio that the number of days from the Effective Date through the last day in the month containing the Effective Date bears to the number of days in such month. Thereafter, on or before the first day of each succeeding calendar month, Lessee shall pay Lessor in advance the Base Monthly Rental.

B. (i) Commencing on the first Adjustment Date and on each Adjustment Date thereafter, the Base Annual Rental shall increase by an amount equal to the product of the then-current Base Annual Rental multiplied by 2.00%. The increased Base Annual Rental shall constitute the Base Annual Rental due and payable until the next Adjustment Date.

(ii) If the Rent to Sales Ratio as measured at the end of each of Lessee's fiscal quarters exceeds 10% for two consecutive fiscal quarters, the then-current Base Annual Rental shall increase by an amount equal to the product of the then-current Base Annual Rental multiplied by 2.00%; provided that there shall not be more than one such increase under this clause (ii) during the Lease Term (except as provided in the next sentence). The increase to Base Annual Rental under this clause (ii) shall terminate at the commencement of the first fiscal

² NTD: Subject to accounting review for capital/operating lease treatment.

quarter after two consecutive quarters in which the Rent to Sales Ratio is 10% or below; provided that such termination shall not prevent a subsequent increase to the Base Annual Rental under this clause (ii) if the Rent to Sales Ratio again exceeds 10% for two consecutive fiscal quarters.

C. All sums of money required to be paid by Lessee under this Lease which are not specifically referred to as rent ("Additional Rental") shall be considered rent although not specifically designated as such. Lessor shall have the same remedies for nonpayment of Additional Rental as those provided herein for the nonpayment of Base Annual Rental.

6. ***Representations and Warranties of Lessee.*** The representations and warranties of Lessee contained in this Section are being made to induce Lessor to enter into this Lease and Lessor has relied, and will continue to rely, upon such representations and warranties. Lessee represents and warrants to Lessor as of the Effective Date as follows:

A. ***Organization, Authority and Status.*** (i) Each of the Lessee Parties (other than individuals), as applicable, is duly organized or formed, validly existing and in good standing under the laws of its state of incorporation or formation. Lessee is qualified as a foreign corporation, partnership or limited liability company, as applicable, to do business in each state where the Properties are located, and each of the Lessee Parties is qualified as a foreign corporation, partnership or limited liability company, as applicable, to do business in any other jurisdiction where the failure to be qualified would reasonably be expected to result in a Material Adverse Effect. All necessary action has been taken to authorize the execution, delivery and performance by Lessee of this Lease and of the other documents, instruments and agreements provided for herein. Lessee is not a "foreign corporation", "foreign partnership", "foreign trust", "foreign limited liability company" or "foreign estate", as those terms are defined in the Internal Revenue Code and the regulations promulgated thereunder. The person(s) who have executed this Lease on behalf of Lessee are duly authorized to do so. None of the Lessee Parties, and no individual or entity owning directly or indirectly any interest in any of the Lessee Parties, is an individual or entity whose property or interests are subject to being blocked under any of the OFAC Laws and Regulations or is otherwise in violation of any of the OFAC Laws and Regulations; provided, however, the representation contained in this sentence shall not apply to any Person to the extent such Person's interest is in or through a U.S. Publicly-Traded Entity.

B. ***Enforceability.*** Upon full execution of this Lease by Lessor and Lessee, this Lease shall constitute the legal, valid and binding obligation of Lessee, enforceable against Lessee in accordance with its terms, except as such enforceability may be limited by applicable bankruptcy, insolvency, liquidation, reorganization and other laws affecting the rights of creditors generally and general principles of equity.

C. ***Litigation.*** There are no suits, actions, proceedings or investigations pending, or, to the best of its knowledge, threatened against or involving the Lessee Parties or any of the Properties before any arbitrator or Governmental Authority, except for such suits, actions, proceedings or investigations which, individually or in the aggregate, have not had, and would not reasonably be expected to result in, a Material Adverse Effect.

D. ***Absence of Breaches or Defaults.*** The Lessee Parties are not, and the authorization, execution, delivery and performance of this Lease and the documents, instruments and agreements provided for herein will not result in, any breach or default under any document, instrument or agreement to which any of the Lessee Parties is a party or by which any of the Lessee Parties, any of the Properties or any of the property of any of the Lessee Parties is subject or bound, except for such breaches or defaults which, individually or in the aggregate, have not had, and would not reasonably be expected to result in, a Material Adverse Effect [and such breaches or defaults relating to any failure to obtain the consent of a lessor under a Ground Lease to the assignment of the lessee's interest in such Ground Lease to Lessor, where such consent is required]. The authorization, execution, delivery and performance of this Lease and the documents, instruments and agreements provided for herein will not violate any applicable law, statute, regulation, rule, ordinance, code, except for such violations which individually or in the aggregate have not had and would not reasonably be expected to result in, a Material Adverse Effect, rule or order. Lessee has not assigned, transferred, mortgaged, hypothecated or otherwise encumbered this Lease or any rights hereunder or interest herein, except as otherwise provided in the Leasehold Mortgage and as expressly set forth in Section 23 below.

E. *Liabilities of Lessor.* Lessee is not liable for any indebtedness for money borrowed by Lessor and has not guaranteed any of the debts or obligations of Lessor.

F. *Licenses and Permits; Access.* All required licenses and permits, both governmental and private, to use and operate each of the Properties as a Permitted Concept are in full force and effect, except for such licenses and permits the failure of which to obtain has not had, and would not reasonably be expected to result in, a Material Adverse Effect and except for certain liquor licenses applications which have been submitted to the applicable governmental authorities (and with respect to which an interim management agreement has been entered into or a temporary license or permit has been obtained). Adequate rights of access to public roads and ways are available to each of the Properties for unrestricted ingress and egress and otherwise to permit utilization of each of the Properties for their intended purposes. Lessor shall fully cooperate with Lessee throughout the term of this Lease to secure or maintain proper zoning, building and other permits and compliance with all applicable laws. Lessor shall execute any petitions, requests, applications and the like as Lessee shall reasonably request in order to obtain any permit, license, variances and approvals which, in the reasonable judgment of Lessee, are necessary for the lawful construction and/or operation of Lessee's business on each of the Properties, provided, however, that Lessee shall indemnify and save Lessor harmless from any and all expenses, costs, charges, liabilities, losses, obligations, damages and claims of any type which may be imposed upon, asserted against or incurred by Lessor by reason of same, including without limitation, the fees and cost of Lessor's attorneys' for reviewing any documents submitted by Lessee to or for the benefit of Lessor.

G. *Condition of Properties.* Except as disclosed in those certain reports described on Schedule 6G attached hereto, each of the Properties, including the Personal Property, is in good condition and repair and well maintained, ordinary wear and tear excepted, fully equipped and operational, free from structural defects, safe and properly lighted.

H. *Utilities.* Adequate public utilities are available at each of the Properties to permit utilization of each of the Properties as a Permitted Concept and all utility connection fees and use charges will have been paid in full except for such non-payment which individually or in the aggregate has not had, and would not reasonably be expected to result in, a Material Adverse Effect.

I. *Area Development.* No condemnation or eminent domain proceedings affecting any of the Properties have been commenced or, to the best of Lessee's knowledge, are contemplated that would have a Material Adverse Effect.

J. *Financial Information.* Lessee has delivered to Lessor certain financial statements and other information concerning the Lessee Parties in connection with this Lease (collectively, the "Financial Information"). The Financial Information is true, correct and complete in all material respects; there have been no amendments to the Financial Information since the date such Financial Information was prepared or delivered to Lessor. Lessee understands that Lessor is relying upon the Financial Information and Lessee represents that such reliance is reasonable. All financial statements included in the Financial Information fairly represent as of the date of such financial statements the financial condition of each individual or entity to which they pertain. No change has occurred with respect to the financial condition of any of the Lessee Parties and/or the Properties as reflected in the Financial Information which has not been disclosed in writing to Lessor or has had, or could reasonably be expected to result in, a Material Adverse Effect.

K. *Zoning; Compliance With Laws.* Each of the Properties is in material compliance with all applicable zoning requirements, and the use of each of the Properties as a Permitted Concept does not constitute a nonconforming use under applicable zoning requirements. The Lessee Parties and the Properties are in material compliance with all Applicable Regulations except (i) for such noncompliance which has not had, and would not reasonably be expected to result in, a Material Adverse Effect; or (ii) as set forth in the Environmental Reports.

L. *Environmental.* To the best of Lessee's knowledge, except (i) as would not reasonably be expected to result in a Material Adverse Effect; or (ii) as set forth in the Environmental Reports:

(i) None of the Properties nor any of the Lessee Parties are in material violation of, or subject to, any pending or, to Lessee's actual knowledge, threatened investigation or inquiry by any Governmental Authority or to any remedial obligations under any Environmental Laws with respect to the use of any of the Properties;

(ii) All permits, licenses or similar authorizations required for the Lessee Parties to occupy, operate or use any buildings, improvements, fixtures and equipment forming a part of any of the Properties by reason of any Environmental Laws have been obtained;

(iii) No Hazardous Materials have been used, handled, manufactured, generated, produced, stored, treated, processed, transferred, disposed of or otherwise Released in, on, under, from or about any of the Properties, except in Permitted Amounts;

(iv) None of the Properties contain Hazardous Materials, except in Permitted Amounts;

(v) There is no threat of any Release migrating to any of the Properties in excess of Permitted Amounts;

(vi) There is no past or present non-compliance with Environmental Laws, or with permits issued pursuant thereto, in connection with the use of any of the Properties;

(vii) None of the Lessee Parties has received any written or oral notice from any person or entity (including but not limited to a Governmental Authority) relating to Hazardous Materials or Remediation thereof in excess of Permitted Amounts, of possible liability of any person or entity pursuant to any Environmental Law, other environmental conditions in connection with any of the Properties, or any actual or potential administrative or judicial proceedings in connection with any of the foregoing, in each case with respect to the use of any of the Properties;

(viii) All documents in the possession of the Lessee Parties relating to any Environmental Condition or Releases of Hazardous Materials in, on, under or from any of the Properties, other than in Permitted Amounts, has been provided to Lessor, including, without limitation, any such documentation relating to prior Remediation; and

(ix) All of the Properties are free and clear of all liens and other encumbrances imposed pursuant to any Environmental Law (the "Environmental Liens"); and none of the Lessee Parties has allowed any tenant or other user of any of the Properties to do any act that materially increased the dangers to human health or the environment, posed an unreasonable risk of harm to any person or entity (whether on or off any of the Properties), impaired the value of any of the Properties in any material respect, is contrary to any requirement of any insurer, constituted a public or private nuisance, constituted waste, or violated any covenant, condition, agreement or easement applicable to any of the Properties.

M. *No Mechanics' Liens.* There are no delinquent accounts payable or mechanics' liens in favor of any materialman, laborer, or any other person or entity in connection with labor or materials furnished to or performed on any portion of the Properties; and no work has been performed or is in progress nor have materials been supplied to the Properties or agreements entered into for work to be performed or materials to be supplied to the Properties prior to the Effective Date, which will be delinquent on or before the Effective Date.

N. *Money Laundering.* (i) Lessee has taken all reasonable measures, in accordance with all applicable Anti-Money Laundering Laws, with respect to each holder of a direct or indirect interest in the Lessee Parties, to assure that funds invested by such holders in the Lessee Parties are derived from legal sources; provided, however, none of the foregoing shall apply to any Person to the extent that such Person's interest is in or through a U.S. Publicly-Traded Entity.

(ii) To Lessee's knowledge after making due inquiry, neither any of the Lessee Parties nor any holder of a direct or indirect interest in the Lessee Parties (a) is under investigation by any Governmental Authority for, or has been charged with, or convicted of, any violation of any Anti-Money Laundering Laws, or drug trafficking, terrorist-related activities or other money laundering predicated crimes or a violation of the BSA, (b) has been assessed civil

penalties under these or related laws, or (c) has had any of its funds seized or forfeited in an action under these or related laws; provided, however, none of the foregoing shall apply to any Person to the extent that such Person's interest is in or through a U.S. Publicly-Traded Entity.

(iii) Lessee has taken reasonable steps, consistent with industry practice for comparable organizations and in any event as required by law, to ensure that the Lessee Parties are and shall be in compliance with all (a) Anti-Money Laundering Laws and (b) OFAC Laws and Regulations.

7. ***Transfer, Participation and Securitization.*** Lessee covenants to Lessor for so long as this Lease is in effect as follows:

(i) Lessee agrees to cooperate in good faith with Lessor and Lender in connection with any Transfer, Participation and/or Securitization of any of the Loan Documents, or any or all servicing rights with respect thereto, including, without limitation, (X) providing such documents, financial and other data, and other information and materials (the "Disclosures") which would typically be required with respect to the Lessee Parties and are reasonably requested by a purchaser, transferee, assignee, servicer, participant, investor or rating agency involved with respect to such Transfer, Participation and/or Securitization, as applicable; provided, however, the Lessee Parties shall not be required to make Disclosures of any confidential information or any information which has not previously been made public; and (Y) amending the terms of this Lease to the extent necessary so as to satisfy the requirements of purchasers, transferees, assignees, servicers, participants, investors or selected rating agencies involved in any such Transfer, Participation or Securitization, so long as such amendments are acceptable to Lessee and would not have a material adverse effect upon the Lessee Parties or the transactions contemplated by this Lease. Lessor shall be responsible for causing Lender to prepare at Lender's expense any documents evidencing the amendments referred to in the preceding subitem (Y).

(ii) Lessee consents to Lessor and Lender providing the Disclosures to each purchaser, transferee, assignee, servicer, participant, investor or rating agency involved with respect to such Transfer, Participation and/or Securitization, as applicable. Lessor shall reimburse Lessee for Lessee's reasonable attorney fees and other out-of-pocket expenses incurred in connection with the performance of its obligations under this Section 7.

8. ***Rentals To Be Net to Lessor.*** The Base Annual Rental payable hereunder shall be net to Lessor, so that this Lease shall yield to Lessor the rentals specified during the Lease Term, and that all costs, expenses and obligations of every kind and nature whatsoever relating to the operation, management, maintenance, repair, restoration and replacement of the Properties and all improvements and appurtenances related thereto or any part thereof shall be performed and paid by Lessee, including, without limitation, all maintenance costs or expenses with respect to the Permitted Exceptions [and the payment of all rent and other sums required to be paid under the Ground Leases].

9. ***Taxes and Assessments.*** Subject to Lessee's right to contest taxes and assessments as set forth in this Section 9, Lessee shall be obligated to pay, as they accrue, all taxes and assessments of every type or nature assessed against, imposed upon or arising with respect to Lessor, any of the Properties, this Lease, the rental or other payments due under this Lease or Lessee during the Lease Term, including, without limitation, the following:

A. All taxes and assessments upon any of the Properties or any part thereof and upon any Personal Property, whether belonging to Lessor or Lessee, or any tax or charge levied in lieu of such taxes and assessments;

B. All taxes, charges, license fees and or similar fees imposed by reason of the use of any of the Properties by Lessee; and

C. All excise, transaction, privilege, license, sales, use and other taxes upon the rental or other payments due under this Lease, the leasehold estate of either party or the activities of either party pursuant to this Lease.

Lessee shall be permitted to satisfy its obligation to pay such taxes and assessments as they accrue by paying such taxes and assessments prior to the earlier of delinquency or the accrual of interest on the unpaid balance.

Notwithstanding the foregoing, but without limiting the preceding obligation of Lessee to pay all taxes which are imposed on the rental or other payments due under this Lease, in no event will Lessee be required to pay any net income taxes (i.e., taxes which are determined taking into account deductions for depreciation, interest, taxes and ordinary and necessary business expenses) or franchise taxes (unless imposed in lieu of other taxes that would otherwise be the obligation of Lessee under this Lease, including, without limitation, any "gross receipts tax" or any similar tax based upon gross income or receipts of Lessor which does not take into account deductions from depreciation, interest, taxes and/or ordinary or necessary business expenses) of Lessor, any transfer taxes of Lessor, or any tax imposed with respect to the sale, exchange or other disposition by Lessor, in whole or in part, of any of the Properties or Lessor's interest in this Lease (other than transfer or recordation taxes imposed in connection with the transfer of any of the Properties to Lessee or the termination of this Lease pursuant to the provisions of this Lease).

All taxing authorities shall be instructed to send all tax and assessment invoices to Lessee and Lessee shall promptly provide Lessor with copies of all real property tax and assessment invoices received by Lessee. Within thirty (30) days after each tax and assessment payment is required by this Section to be paid, Lessee shall also provide Lessor with evidence that such invoices were paid in a timely fashion. Notwithstanding any provision to the contrary in this Lease, Lessee may, at its own expense, and Lessor shall cooperate with any effort by Lessee to, contest or cause to be contested, by appropriate legal proceedings conducted in good faith and with due diligence, the amount or validity or application, in whole or in part, of any item specified in this Section, lien therefor, or any mechanic's lien or other lien imposed on Lessee's leasehold interest in this Lease or lien therefor, provided that (i) Lessee shall provide written notice to Lessor of any contest involving more than \$10,000.00, (ii) such proceeding shall suspend the collection thereof from the applicable Properties or any interest therein, (iii) neither such Properties nor any interest therein would be in any danger of being sold, forfeited or lost by reason of such proceedings, (iv) no Event of Default has occurred and is continuing, (v) Lessee shall have deposited with Lessor adequate reserves for the payment of the taxes or liens, together with all interest and penalties thereon, unless paid in full under protest, or Lessee shall have furnished the security as may be required in the proceeding or as may be reasonably required by Lessor to insure payment of any contested taxes or liens, and (vi) Lessee shall reimburse Lessor for Lessor's reasonable attorney fees and other out-of-pocket expenses incurred in connection with Lessor's cooperation with such proceedings under this Paragraph.

10. **Utilities.** Lessee shall contract, in its own name, for and pay when due all charges for the connection and use of water, gas, electricity, telephone, garbage collection, sewer use and other utility services supplied to the Properties during the Lease Term. Unless resulting from Lessor's gross negligence or willful misconduct, under no circumstances shall Lessor be responsible for any interruption of any utility service; provided, however, the term "gross negligence," for purposes of this Section 10, shall not include gross negligence imputed as a matter of law to Lessor solely by reason of Lessor's interest in any of the Properties or Lessor's failure to act in respect of matters which are the obligation of Lessee under this Lease.

11. **Insurance.**

A. Throughout the Lease Term, Lessee shall maintain with respect to each of the Properties, at its sole expense, the following types and amounts of insurance (which, as more particularly set forth below, may be included under a blanket insurance policy if all the other terms hereof are satisfied):

(i) Insurance against loss, damage or destruction by fire and other casualty, including theft, vandalism and malicious mischief, flood (for each of the Properties which is in a location designated by the Federal Emergency Management Administration as a Special Flood Hazard Area), earthquake (for each of the Properties which is in an area subject to destructive earthquakes within recorded history), boiler explosion, sprinkler damage (for each of the Properties which has a sprinkler system), all matters covered by a standard extended coverage endorsement, special coverage endorsement commonly known as an "all-risk" endorsement and such other risks as Lessor may reasonably require, insuring each of the Properties for not less than 100% of their full insurable replacement cost with an "agreed amount" endorsement.

(ii) Commercial general liability and property damage insurance written on an occurrence form, covering Lessor and Lessee against bodily injury liability and property damage liability, including without limitation any liability arising out of the ownership, maintenance, repair, condition or operation of the Properties or adjoining ways, streets or sidewalks and, if applicable, insurance covering Lessor and Lessee against liability arising from the sale of liquor, beer or wine on the Properties. Such insurance shall cover at least the following hazards: (a) premises and operations, (b) products and completed operations, (c) personal injury and advertising injury, (d) independent contractors, (e) blanket contractual liability for all written and oral contracts, and (f) contractual liability covering the indemnities contained in this Lease, to the extent the same is available. Such insurance shall be in amounts of not less than \$2,000,000.00 per occurrence with respect to any insured liability, whether for personal injury or property damage, or such higher limits as Lessor may reasonably require from time to time, and shall be of form and substance satisfactory to Lessor with an aggregate of not less than \$10,000,000. If Lessee's liability policies do not contain the standard ISO separation of insureds provision, or a substantially similar clause, they shall be endorsed to provide cross-liability coverage.

(iii) Excess or Umbrella liability with a limit of not less than \$5,000,000 per occurrence, which shall provide coverage excess of the commercial general liability, auto liability and employers' liability.

(iv) Business income insurance or rental interruption insurance, as requested by Lessor, without a provision for co-insurance, in an amount equal to 100% of the Base Annual Rental for a period of not less than twelve consecutive calendar months.

(v) State Worker's compensation insurance in the statutorily mandated limits, employer's liability insurance with limits not less than \$500,000 or such greater amount as Lessor may from time to time reasonably require and such other insurance as may be necessary to comply with applicable laws.

(vi) During any period of construction, restoration, reconstruction, rehabilitation, replacement or alteration to the Properties, builder's risk insurance in so-called non-reporting form upon all buildings, improvements and related appurtenances while under construction in an amount and with coverage approved by Lessor in its reasonable discretion but only to the extent that such coverage is not being maintained by Lessee's contractor(s) pursuant to a policy or policies that satisfy this requirement.

(vii) Building ordinance coverage, including demolition and increased cost of construction and contingent operation from building laws coverage. "Coverage A" of such coverage shall be written for an amount equal to the full insurable replacement cost of the building. "Coverage B" of such coverage shall be written for an amount not less than \$250,000. "Coverage C" of such coverage shall be written for an amount not less than \$1,000,000.00.

(viii) Automobile liability with a limit of not less than One Million Dollars (\$1,000,000.00) for each accident, with such insurance covering liability arising out of any automobile, including owned, hired and non-owned automobiles.

(ix) Such other insurance as may from time to time be reasonably required by Lessor in order to protect its interests with respect to the Properties.

B. All insurance policies shall:

(i) Provide for a waiver of subrogation by the insurer as to claims against Lessor, Lender and their respective employees and agents and provide that such insurance cannot be unreasonably cancelled, invalidated or suspended on account of the conduct of Lessee, its officers, directors, employees or agents;

(ii) Provide that no "Other Insurance" clause in the insurance policy shall exclude any policies of insurance maintained by Lessor or Lender and that the insurance policy shall not be brought into contribution with insurance maintained by Lessor or Lender;

(iii) Contain a standard without contribution mortgage clause endorsement in favor of Lender and its successors and assigns as their interests may appear and any other party designated by Lessor;

(iv) Provide that the policy of insurance shall not be terminated or cancelled without at least thirty (30) days' prior written notice (except ten (10) days prior written notice for non-payment of premium) to Lessor, Lender and to any other party covered by any standard mortgage clause, loss-payee or additional insured endorsement;

(v) Provide that the insurer shall not have the option to restore the applicable Properties if Lessor or Lessee elects to terminate this Lease in accordance with the terms hereof;

(vi) Be issued by insurance companies licensed or authorized to do business in the states in which the Properties are located and which are rated A:VIII or better by Best's Insurance Guide or are otherwise approved by Lessor; and

(vii) Provide that the insurer shall not deny a claim because of the negligence of Lessee, anyone acting for Lessee or any tenant or other occupant of any of the Properties.

IT IS EXPRESSLY UNDERSTOOD AND AGREED THAT THE FOREGOING MINIMUM LIMITS OF INSURANCE COVERAGE SHALL NOT LIMIT THE LIABILITY OF LESSEE FOR ITS ACTS OR OMISSIONS AS PROVIDED IN THIS LEASE. All liability insurance policies (with the exception of worker's compensation insurance to the extent not available under statutory law), shall designate Lessor and Lender and their respective successors and assigns as loss payees and additional insureds, and shall be payable as set forth in Section 21 hereof. All such policies shall be written as primary policies, with deductibles not to exceed 10% of the amount of coverage. Any other policies, including any policy now or hereafter carried by Lessor or Lender, shall serve as excess coverage. Lessee shall procure policies for all insurance for periods of not less than one year and shall provide to Lessor and Lender certificates of liability insurance using an ACORD 25 form and an ACORD 28 form to provide proof of property insurance. In the event of any transfer by Lessor of Lessor's interest in the Properties or any financing or refinancing of Lessor's interest in the Properties, Lessee shall, upon not less than ten (10) days' prior written notice, deliver to Lessor or any Lender providing such financing or refinancing, as the case may be, certificates of all insurance required to be maintained by Lessee hereunder naming such transferee or such Lender, as the case may be, as an additional named insured to the extent required herein effective as of the date of such transfer, financing or refinancing.

C. Failure to Procure Insurance. In the event Lessee shall fail to procure insurance required under this Section and fail to maintain same in full force and effect continuously during the Lease Term, Lessor shall be entitled to immediately procure the same and Lessee shall, within two (2) business days after demand therefor, reimburse Lessor for such premium expense as Additional Rent.

D. Blanket Policy. Any insurance which Lessee is required to obtain pursuant to this Section 11 may be carried under a blanket policy or policies covering other properties of Lessee; provided, however, that such evidence of insurance shall specify the total aggregate limits available under the policy or policies including the effectiveness of the policy, the amount and character of the coverage and otherwise comply with the provisions of this Section 11.

E. No Representation of Coverage Adequacy. By requiring insurance herein, Lessor does not represent that coverage and limits will necessarily be adequate to protect Lessee, and such coverage and limits shall not be deemed as a limitation of Lessee's liability under any indemnification provisions in this Lease. Failure of Lessor to demand such certificate or other evidence of full compliance with these insurance requirements or failure of Lessor to identify a deficiency from evidence that is provided shall not be construed as a waiver of Lessee's obligation to maintain such insurance.

12. Tax and Insurance Impound. If at any time during the Lease Term the FCCR is less than or equal to 1.10:1.00, tested quarterly on a trailing twelve (12) months basis, Lessor may require the establishment of an impound account (which shall not be deemed a trust fund) for paying taxes, assessments and/or insurance premiums for each of the Properties. Upon such requirement, Lessor will provide a reasonable estimate of the

amounts needed to pay such taxes, assessments and/or insurance premiums when due and will notify Lessee to pay the same to Lessor in equal monthly installments, as nearly as practicable, in addition to all other sums due under this Lease. Should additional funds be required at any time, Lessee shall pay the same to Lessor on demand. Lessee shall advise Lessor of all taxes and insurance bills which are due and shall cooperate fully with Lessor in assuring that the same are paid. Lessor may deposit all impounded funds in accounts insured by any federal or state agency and may commingle such funds with other funds and accounts of Lessor. Interest or other gains from such funds, if any, shall be the sole property of Lessor. Lessor shall give to Lessee an annual accounting showing all credits and debits to and from such impounded funds received from Lessee.

13. ***Payment of Rental and Other Sums.*** All rental and other sums which Lessee is required to pay hereunder shall be the unconditional obligation of Lessee and shall be payable in full when due without any setoff, abatement, deferment, deduction or counterclaim whatsoever. Base Monthly Rental and impound payments, if any, due to Lessor from Lessee shall be paid to Lessor (at its election from time to time) in one of the following manners: (a) by electronic deposit into an account designated by Lessor, (b) by mail at Lessor's address set forth in Section 29, or (c) by mail to any other place in the United States designated by Lessor upon at least thirty (30) days' prior written notice to Lessee. Any delinquent payment (that is, any payment not made within five calendar days after the date when due) shall, in addition to any other remedy of Lessor, incur a late charge of 5% (which late charge is intended to compensate Lessor for the cost of handling and processing such delinquent payment and should not be considered interest) and bear interest at the Default Rate, such interest to be computed from and including the date such payment was due through and including the date of the payment; provided, however, in no event shall Lessee be obligated to pay a sum of late charge and interest higher than the maximum legal rate then in effect.

14. ***Use.***

A. ***Lessee Use.*** The Properties may be used solely for the operation of a Permitted Concept. For avoidance of doubt, Lessor agrees that alcoholic or malt beverages may be sold upon the Properties in connections with the operation of a restaurant, subject to Lessee complying with all Applicable Regulations and Permitted Exceptions relating thereto.

B. ***Opening/Operating Requirement.*** Lessee shall conduct its business operations at all of the Properties continuously until the first (1st) anniversary of the Effective Date, subject, however, to Lessee's right to close the any of the Properties for business by reason of any matters described in Section 34 or condemnation. From and after the first (1st) anniversary of the Effective Date, Lessee shall be permitted to discontinue operations at not more than fifteen percent (15%) of the Properties; provided, however, that any Properties assigned or subleased by Lessee in accordance with Section 27 of this Lease shall not be factored into the calculation of the fifteen percent (15%) cap during such period of time that such Properties are open and operating for business as a Permitted Concept. If Lessee does discontinue operations from and after the first (1st) anniversary of the Effective Date as permitted by this Section 14.B, Lessee shall (i) give written notice to Lessor as promptly as practicable after Lessee elects to cease operation on any or all of the Properties, (ii) provide adequate protection and maintenance of any such Property during any period of vacancy, (iii) comply with all Applicable Regulations and otherwise comply with the terms and conditions of this Lease other than the continuous use covenant set forth in this Section, and (iv) such discontinuance of operations shall not activate, make applicable or otherwise trigger any right of any person or entity to acquire any such Property whether by option, right of first refusal, right of first offer or otherwise. Notwithstanding anything herein to the contrary, Lessee shall pay the Base Monthly Rental and Additional Rental as and when due under this Lease and shall perform all of its other obligations under this Lease during any period in which Lessee discontinues operations in whole or in part.

15. ***Compliance with Laws Generally.***

A. Lessee's use and occupation of each of the Properties, and the condition thereof, shall, at Lessee's sole cost and expense, comply with all Applicable Regulations now or hereafter in effect and all restrictions, covenants and encumbrances of record with respect to each of the Properties, except for such non-compliance which individually or in the aggregate would not result in a material adverse effect on any of the Properties. In addition, the Lessee Parties shall comply with all Applicable Regulations now or hereafter in effect, including, without limitation, the OFAC Laws and Regulations and the Anti-Money Laundering Laws. Without limiting the generality

of the other provisions of this Section, Lessee shall comply in all material respects with the ADA, and all regulations promulgated thereunder, as it affects each of the Properties.

B. Lessee will not permit any act or condition to exist on or about any of the Properties which will increase any insurance rate thereon, except when such acts are required in the normal course of its business and Lessee shall pay for such increase.

C. Lessee shall maintain in full force and effect all licenses and permits, both governmental and private, required to use and operate each Property in accordance with its then Permitted Concept, except where the failure to do so would not result in a material adverse effect on such Property.

D. In addition to the other requirements of this Section or any other provisions of this Lease, Lessee shall, at all times throughout the Lease Term, comply with all federal, state or local statutes, laws, rules, regulations, ordinances, codes, policies or rules of common law now or hereafter in effect and in each case, as amended, and any judicial or administrative interpretation thereof, including any judicial order, consent, decree or judgment, applicable to Lessee.

16. *Compliance With Environmental Laws.*

A. Lessee covenants to Lessor for so long as this Lease is in effect that, except (i) for the Existing Environmental Conditions; or (ii) as would not result in a material adverse effect on any of the Properties:

(i) The Properties, the Lessee Parties and any other operator or user of any of the Properties during the Lease Term shall not be in violation of or subject to any investigation or inquiry by any Governmental Authority or subject to any Remediation obligations under any Environmental Laws.

(ii) All uses and operations on or of each of the Properties during the Lease Term, whether by Lessee or any other person or entity, shall be in compliance with all Environmental Laws and permits issued pursuant thereto. Lessee, as the operator of the Properties and on behalf of Lessor and Lessee, acknowledges and agrees to meet reporting requirements during the Lease Term regarding chemical substances produced, used by or stored in Lessee's inventory at any of the Properties that are deemed hazardous with maintenance of a MSDS (Material Safety Data Sheet) as mandated under the hazardous communication regulations of OSHA. Tier Two reports will be filed annually during the Lease Term to the extent required by Environmental Laws or other federal, state or local regulations with the applicable Governmental Authority. All reporting, investigation and/or remediation requirements under any Environmental Law with respect to any and all Releases of Hazardous Materials occurring prior to or during the term of this Lease at, on or near any Property are the responsibility of Lessee to the extent imposed on either Lessee or Lessor under Environmental Laws.

(iii) There shall be no Releases or Hazardous Materials in, on, under or from any of the Properties during the Lease Term, except in Permitted Amounts.

(iv) Lessee shall keep each of the Properties, or cause each of the Properties to be kept, free and clear of all Environmental Liens during the Lease Term.

(v) Lessee shall not do or allow any tenant or other user of any of the Properties to do any act with respect to any of the Properties during the Lease Term that (a) materially increases the dangers to human health or the environment, (b) poses an unreasonable risk of harm to any person or entity (whether on or off any of the Properties), (c) impairs or is reasonably likely to impair the value of any of the Properties, (d) is contrary to any requirement of any insurer, (e) constitutes a public or private nuisance or constitutes waste, or (f) violates any covenant, condition, agreement or easement applicable to any of the Properties.

(vi) Lessee shall promptly notify Lessor in writing upon Lessee obtaining actual knowledge of any of the following during the Lease Term:

(a) any presence of Releases or Threatened Releases in, on, under, from or migrating towards any of the Properties, in excess of Permitted Amounts, including, without limitation, the presence on or under any of the Properties of any Hazardous Materials in excess of Permitted Amounts;

(b) any material non-compliance with any Environmental Laws related in any way to any of the Properties;

(c) any Environmental Lien or any act or omission which could reasonably be expected to result in the imposition of an Environmental Lien;

(d) any required or proposed Remediation of Environmental Conditions relating to any of the Properties, including, without limitation, any and all material enforcement, clean-up, remedial, removal or other governmental or regulatory actions threatened, instituted or completed pursuant to any of the Environmental Laws affecting any of the Properties;

(e) any written or oral notice of which any of the Lessee Parties becomes aware from any source whatsoever (including but not limited to a Governmental Authority) relating in any way to Hazardous Materials, Remediation thereof, possible liability of any person or entity pursuant to any Environmental Law, other Environmental Conditions in connection with any of the Properties, or any actual or potential administrative or judicial proceedings in connection with anything referred to in this Lease, unless it could not reasonably be expected to have a material adverse effect on any of the Properties; or

(f) any material investigation or inquiry initiated by any Governmental Authority relating to the Environmental Condition of any of the Properties.

(vii) In the event that Lessor has a reasonable basis to conclude that Lessee has materially breached its obligations under this Section 16, Lessee shall, at the reasonable request of Lessor and at its sole cost and expense:

(a) perform any environmental site assessment or other investigation of environmental conditions in connection with any of the Properties related to such breach as may be reasonably requested by Lessor (including, to the extent related to such breach, sampling, testing and analysis of soil, water, air, building materials and other materials and substances whether solid, liquid or gas), and share with Lessor the reports and other results thereof, and Lessor and the other Indemnified Parties shall be entitled to rely on such reports and other results thereof;

(b) have the Properties inspected as may be required by any Environmental Laws for seepage, spillage and other environmental concerns related to such breach. Lessee shall provide Lessor with written certified results of all inspections performed on any of the Properties. In the event that Lessee is found to have breached its obligation under this Section 16, all costs and expenses associated with the inspection (including, sampling, testing and analysis of soil, water, air, building materials and other materials and substances, whether solid, liquid or gas), preparation and certification of results, as well as those associated with any corrective action, shall be paid by Lessee. All inspections and tests performed on any of the Properties shall be conducted in compliance with all Environmental Laws; and

(c) provide to Lessor, reasonably promptly after Lessor's reasonable written request, any records or assessment reports which Lessee maintains with regard to any Hazardous Materials which are or may have been at any of the Properties, or which are required by any of the Environmental Laws, in each case as a result of Lessee's use of, or activities at, any of the Properties during the Lease Term. Such records shall include, without limitation, inventory records relating to Hazardous Materials at each Property during the Lease Term, governmental permits and correspondence relating to such Hazardous Materials (including without limitation annual federal, state or local Tier Two reports), tank registration documents, evidence of environmental financial assurances required under this Lease or any of the Environmental Laws, and any correspondence, complaints, claims, directives, demands, inquiries, notices, orders or other

communications from any person relating to any violations or alleged violations of any Environmental Laws during the Lease Term with respect to any of the Properties.

(viii) Lessee shall, at its sole cost and expense, and without limiting the rights of Lessor under any other provision of this Lease, comply with all reasonable written requests of Lessor to:

- (a) reasonably effectuate Remediation of any condition (including but not limited to a Release) in, on, under or from any of the Properties during the Lease Term;
- (b) comply with any Environmental Law;
- (c) comply with any lawful directive issued to Lessee from any Governmental Authority; and
- (d) take any other reasonable action necessary or appropriate for protection of human health or the environment to the extent required by Environmental Law.

(ix) Lessor and any other person or entity designated by Lessor, including but not limited to any receiver, any representative of a Governmental Authority, and any environmental consultant, shall have the right, but not the obligation, to enter upon any of the Properties (1) once per year during normal business hours (including without limitation in connection with any Securitization, Participation or Transfer or in connection with a proposed sale or conveyance of any of the Properties or a proposed financing or refinancing secured by any of the Properties or in connection with the exercise of any remedies set forth in this Lease or in any of the Loan Documents, as applicable) or (2) as often as is necessary and at any time in the event (a) an Environmental Condition exists at any of the Properties, (b) Lessor has a reasonable basis for believing that any Environmental Condition exists at any of the Properties, or (c) of an emergency, in each case, to assess any and all aspects of the Environmental Condition of any of the Properties and its use, including but not limited to conducting any environmental assessment or audit (the scope of which shall be determined in the sole but reasonable discretion of the party conducting the assessment) and taking samples of soil, groundwater or other water, air, or building materials, and conducting other invasive testing upon the sole but reasonable written discretion of such party conducting the assessment. Lessor shall not unreasonably interfere with Lessee's operations at any of the Properties while undertaking such assessments. Lessee shall cooperate with and provide reasonable access to Lessor and any other person or entity designated by Lessor. Any such assessment and investigation shall be at Lessee's sole cost and expense if such assessment or investigation shows that a Release has occurred at any of the Properties in excess of Permitted Amounts or if an Event of Default has occurred and is continuing. Otherwise, any such assessment and investigation shall be at the sole cost and expense of the party conducting such assessment and investigation.

B. The obligations of Lessee and the rights and remedies of Lessor under this Section shall survive the termination, expiration and/or release of this Lease with respect to matters arising on or before the expiration or earlier termination of this Lease.

17. ***Condition of Properties; Maintenance.*** Lessee shall (i) maintain each of the Properties in good condition and repair, subject to reasonable and ordinary wear and tear and the condemnation and casualty provisions of this Lease, free from actual or constructive waste, (ii) operate, remodel, update and modernize each of the Properties in accordance with those standards adopted from time to time by Lessee, and (iii) pay all maintenance and operating costs of the Properties in the ordinary course of business, including, without limitation, all maintenance costs or expenses with respect to the Permitted Exceptions. Lessee waives any right to (i) require Lessor to maintain, repair or rebuild all or any part of any of the Properties or (ii) make repairs at the expense of Lessor, pursuant to any Applicable Regulations at any time in effect.

18. ***Alterations and Improvements.*** Lessee shall not alter the exterior, structural, plumbing or electrical elements of any of the Properties in any manner without the consent of Lessor, which consent shall not be unreasonably withheld or conditioned; provided, however, Lessee may undertake nonstructural alterations to any Property (including the exterior, plumbing and electrical elements) costing less than \$250,000.00 (which amount shall be adjusted annually in proportion to the increases in CPI) in any calendar year, without Lessor's consent. For purposes of this Lease, alterations to the structural elements of the Properties shall mean:

- (i) alterations which affect the foundation or “footprint” of the improvements at the Properties; or
- (ii) alterations which involve the structural elements of the improvements at the Properties, such as a load-bearing wall, structural beams, columns, supports or roof.

Any work at any time commenced by Lessee on any of the Properties shall be at Lessee’s sole cost and expense, shall be performed by a licensed contractor, shall be prosecuted diligently to completion, shall be of good workmanship and materials and shall comply fully with all the terms of this Lease. Upon completion of any alterations, Lessee shall promptly provide Lessor with (i) evidence of full payment to all laborers and materialmen contributing to the alterations, (ii) an architect’s certificate certifying the alterations to have been completed in conformity with the plans and specifications, (iii) a certificate of occupancy (if the alterations are of such a nature as would require the issuance of a certificate of occupancy), and (iv) any other documents or information reasonably requested by Lessor. Any addition to or alteration of any of the Properties (excluding any Personal Property) shall automatically be deemed a part of the Properties and belong to Lessor, and Lessee shall execute and deliver to Lessor such instruments as Lessor may require to evidence the ownership by Lessor of such addition or alteration. Lessee shall execute and file or record, as appropriate, a “Notice of Non-Responsibility,” or any equivalent notice permitted under applicable law in the states where the applicable Properties are located.

19. *Indemnification.*

A. Lessee shall, at its sole cost and expense, protect, defend, indemnify, release and hold harmless each of the Indemnified Parties for, from and against any and all Losses (excluding Losses suffered by an Indemnified Party arising out of the gross negligence or willful misconduct of such Indemnified Party; provided, however, that the term “gross negligence” shall not include gross negligence imputed as a matter of law to any of the Indemnified Parties solely by reason of the Lessor’s interest in any of the Properties or Lessor’s failure to act in respect of matters which are or were the obligation of Lessee under this Lease) caused by, incurred or resulting from Lessee’s operations of, or relating in any manner to, any of the Properties, whether relating to their original design or construction, latent defects, alteration, maintenance, use by Lessee or any person thereon, supervision or otherwise, or from any breach of, default under, or failure to perform, any term or provision of this Lease by Lessee, its officers, employees, agents or other persons, or to which any Indemnified Party is subject because of Lessor’s interest in any of the Properties, including, without limitation, Losses arising from (i) any accident, injury to or death of any person or loss of or damage to property occurring in, on or about any of the Properties or portion thereof or on the adjoining sidewalks, curbs, parking areas, streets or ways, (ii) any use, non-use or condition in, on or about, or possession, alteration, repair, operation, maintenance or management of, any of the Properties or any portion thereof or on the adjoining sidewalks, curbs, parking areas, streets or ways, (iii) any representation or warranty made herein by Lessee, in any certificate delivered in connection herewith or in any other agreement to which Lessee is a party or pursuant thereto being false or misleading in any material respect as of the date of such representation or warranty was made, (iv) performance of any labor or services or the furnishing of any materials or other property in respect to any of the Properties or any portion thereof, (v) any taxes, assessments or other charges which Lessee is required to pay under Section 9, (vi) any lien, encumbrance or claim arising on or against any of the Properties or any portion thereof under any Applicable Regulation or otherwise which Lessee is obligated hereunder to remove and discharge, or the failure to comply with any Applicable Regulation, (vii) the claims of any invitees, patrons, licensees or subtenants of all or any portion of any of the Properties or any Person acting through or under Lessee or otherwise acting under or as a consequence of this Lease or any sublease, (viii) any act or omission of Lessee or its agents, contractors, licensees, subtenants or invitees, (ix) any contest referred to in Section 9, [and] (x) the sale of liquor, beer or wine on any of the Properties[, and (xi) any failure by Lessee to comply with any of the terms and conditions of the Ground Leases, including, without limitation, any costs and expenses incurred by any of the Indemnified Parties to cure any such failure].

B. Lessee shall, at its sole cost and expense, protect, defend, indemnify, release and hold harmless each of the Indemnified Parties for, from and against any and all Losses (excluding Losses suffered by an Indemnified Party directly arising out of such Indemnified Party’s gross negligence or willful misconduct; provided, however, that the term “gross negligence” shall not include gross negligence imputed as a matter of law to any of the Indemnified Parties solely by reason of the Lessor’s interest in any of the Properties or Lessor’s failure to act in respect of matters which are or were the obligation of Lessee under this Lease) and costs of Remediation (whether or not performed voluntarily), engineers’ fees, environmental consultants’ fees, and costs of investigation (including

but not limited to sampling, testing, and analysis of soil, water, air, building materials and other materials and substances whether solid, liquid or gas) imposed upon or incurred by or asserted against any Indemnified Parties, and directly or indirectly arising out of or in any way relating to any one or more of the following, but excluding those arising out of or relating to the Existing Environmental Conditions:

- (i) any presence of any Hazardous Materials in, on, above, or under any of the Properties;
- (ii) any past, present or Threatened Release in, on, above, under or from any of the Properties;
- (iii) any activity by Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties in connection with any actual, proposed or threatened use, treatment, storage, holding, existence, disposition or other Release, generation, production, manufacturing, processing, refining, control, management, abatement, removal, handling, transfer or transportation to or from any of the Properties of any Hazardous Materials at any time located in, under, on or above any of the Properties;
- (iv) any activity by Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties in connection with any actual or proposed Remediation of any Hazardous Materials at any time located in, under, on or above any of the Properties, whether or not such Remediation is voluntary or pursuant to court or administrative order, including but not limited to any removal, remedial or corrective action;
- (v) any past, present or threatened non-compliance or violations of any Environmental Laws (or permits issued pursuant to any Environmental Law) in connection with any of the Properties or operations thereon, including but not limited to any failure by Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties to comply with any order of any Governmental Authority in connection with any Environmental Laws, or any failure by Lessee to timely comply with any Tier Two reporting requirements;
- (vi) the imposition, recording or filing or the threatened imposition, recording or filing of any Environmental Lien encumbering any of the Properties;
- (vii) any administrative processes or proceedings or judicial proceedings in any way connected with any matter addressed in this Lease;
- (viii) any past, present or threatened injury to, destruction of or loss of natural resources in any way connected with any of the Properties, including but not limited to costs to investigate and assess such injury, destruction or loss;
- (ix) any acts of Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties in arranging for disposal or treatment, or arranging with a transporter for transport for disposal or treatment, of Hazardous Materials owned or possessed by Lessee, any person or entity affiliated with Lessee or any tenant or other user, at any facility or incineration vessel owned or operated by another person or entity and containing such or similar Hazardous Materials;
- (x) any acts of Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties, in accepting any Hazardous Materials for transport to disposal or treatment facilities, incineration vessels or sites selected by Lessee, any person or entity affiliated with Lessee or any tenant or other user of any of the Properties, from which there is a Release, or a Threatened Release of any Hazardous Materials which causes the incurrence of costs for Remediation;
- (xi) any personal injury, wrongful death, or property damage arising under any statutory or common law or tort law theory, including but not limited to damages assessed for the maintenance of a private or public nuisance or for the conducting of an abnormally dangerous activity on or near any of the Properties; or
- (xii) any misrepresentation or inaccuracy in any representation or warranty of Lessee or any material breach or failure by Lessee to perform any covenants or other obligations pursuant to this Lease.

C. It is expressly understood and agreed that Lessee's obligations under this Section shall survive the expiration or earlier termination of this Lease for any reason.

20. ***Quiet Enjoyment.*** So long as Lessee shall pay the rental and other sums herein provided and shall keep and perform all of the terms, covenants and conditions on its part herein contained, Lessee shall have, subject and subordinate to Lessor's rights herein, the right to the peaceful and quiet occupancy of the Properties without hindrance or interference by Lessor or others claiming by, through or under Lessor. Notwithstanding the foregoing, however, in no event shall Lessee be entitled to bring any action against Lessor to enforce its rights hereunder if an Event of Default shall have occurred and be continuing.

21. ***Condemnation or Destruction.***

A. In the event of a taking of all or any part of any of the Properties for any public or quasi-public purpose by any lawful power or authority by exercise of the right of condemnation or eminent domain or by agreement between Lessor, Lessee and those authorized to exercise such right ("Taking") or the commencement of any proceedings or negotiations which might result in a Taking or any material damage to or destruction of any of the Properties or any part thereof ("Casualty"), Lessee will promptly give written notice thereof to Lessor, generally describing the nature and extent of such Taking, proceedings, negotiations or Casualty and including copies of any documents or notices received in connection therewith. Thereafter, Lessee shall promptly send Lessor copies of all correspondence and pleadings relating to any such Taking, proceedings, negotiations or Casualty. During all periods of time following a Casualty, Lessee shall ensure that the applicable Property is secure and does not pose any risk of harm to adjoining property owners or occupants or third-parties.

B. In the event of a Taking of the whole of any of the Properties, other than for temporary use ("Total Taking"), the obligations of Lessee with respect to such Property only shall terminate as of the date of the Total Taking, but this Lease shall otherwise continue in full force and effect with respect to the remaining Properties. From and after the date of a Total Taking, the Base Annual Rental shall be reduced by an amount equal to the product of (i) Applicable Rent Reduction Percentage for such Property, and (ii) the Base Annual Rental in effect as of the date of such Total Taking (the "Adjustment"). If the date of such Total Taking is other than the first day of a month, the Base Annual Rental payable for the month in which such Total Taking occurs shall be apportioned based on such Adjustment as of the date of the Total Taking. Lessee's obligations to Lessor under Section 19 of this Lease with respect to such Property and Lessee's obligation to pay all other sums of money under this Lease (whether payable to Lessor or to a third-party) which accrue prior to the date of such Total Taking shall survive the partial termination of this Lease with respect to such Property. A Total Taking shall include a Taking, other than for a temporary use, of such a substantial part of any Property as shall result in the portion of such Property remaining after such Taking being unsuitable for use as a Permitted Concept, as determined by Lessee in the exercise of good faith business judgment based on the portion of such Property subject to such Taking (and not the profit or loss of the operations of such Property prior to such Taking). Lessor shall be entitled to receive the entire award or payment in connection with a Total Taking without deduction for any estate vested in Lessee by this Lease. Except as specifically provided herein, Lessee hereby expressly assigns to Lessor all of its right, title and interest in and to every such award or payment and agrees that Lessee shall not be entitled to any award or payment for the value of Lessee's leasehold interest in this Lease. Lessee shall be entitled to claim and receive any award or payment from the condemning authority expressly granted for the taking of Personal Property, the interruption of its business and moving expenses, so long as Lessee does not seek or attempt to obtain any award payable to Lessee by reducing the amount of the award that would otherwise be payable to Lessor.

C. In the event of a Taking of all or any part of any of the Properties for a temporary use ("Temporary Taking"), this Lease shall remain in full force and effect without any reduction of Base Annual Rental, Additional Rental or any other sum payable hereunder. Except as provided below and subject to the terms and provisions of the Loan Documents, Lessee shall be entitled to the entire award for a Temporary Taking, whether paid by damages, rent or otherwise, unless the period of occupation and use by the condemning authorities shall extend beyond the date of expiration of this Lease, in which case the award made for such Taking shall be apportioned between Lessor and Lessee as of the date of such expiration. At the termination of any such Temporary Taking, Lessee will, at its own cost and expense and pursuant to the terms of Section 18 above, promptly commence and complete the restoration of the Property affected by such Temporary Taking.

D. In the event of a Taking which is not a Total Taking or a Temporary Taking ("Partial Taking") or of a Casualty, all awards, compensation or damages shall be paid to Lessor, and Lessor shall have the option to (i) subject to the right of Lessee to elect otherwise as set forth in the following sentence, terminate this Lease with respect to the Property affected by notifying Lessee within 60 days after Lessee gives Lessor notice of such Casualty or that title has vested in the taking authority or (ii) continue this Lease in effect, which election may be evidenced by either a notice from Lessor to Lessee or Lessor's failure to notify Lessee that Lessor has elected to terminate this Lease with respect to such Property within such 60-day period. Lessee shall have a period of 60 days after Lessor's notice that it has elected to terminate this Lease with respect to such Property during which to elect to continue this Lease on the terms herein provided. If Lessor elects to terminate this Lease with respect to such Property and Lessee does not elect to continue this Lease with respect to such Property or shall fail during such 60-day period to notify Lessor of Lessee's intent to continue this Lease with respect to such Property, then this Lease shall terminate with respect to such Property as of the last day of the month during which such period expired. Lessee shall then immediately vacate and surrender such Property, all obligations of either party hereunder with respect to such Property shall cease as of the date of termination (provided, however, Lessee's obligations to Lessor under any indemnification provisions of this Lease with respect to such Property (including, without limitation, Section 19) and Lessee's obligations to pay Base Annual Rental, Additional Rental and all other sums (whether payable to Lessor or a third party) accruing under this Lease with respect to such Property prior to the date of termination shall survive such termination), the Base Annual Rental shall be reduced by an amount equal to the product of (i) the Applicable Rent Reduction Percentage for such Property and (ii) the Base Annual Rental in effect as of the date of such Partial Taking or Casualty. This Lease shall continue in full force and effect with respect to all other Properties. If Lessor elects not to terminate this Lease with respect to such Property, or if Lessor elects to terminate this Lease with respect to such Property but Lessee elects to continue this Lease with respect to such Property, then this Lease shall continue in full force and effect on the following terms: (i) all Base Annual Rental, Additional Rental and other sums and obligations due under this Lease shall continue unabated, and (ii) Lessee shall promptly commence and diligently prosecute restoration of such Property to the same condition, as nearly as practicable, as prior to such Partial Taking or Casualty as approved by Lessor. Lessor shall promptly make available in installments as restoration progresses an amount up to but not exceeding the amount of any award, compensation or damages received by Lessor after deducting all reasonable out-of-pocket costs, fees and expenses incident to the collection thereof, including all reasonable out-of-pocket costs and expenses incurred by Lessor and Lender in connection therewith (the "Net Restoration Amount"), upon request of Lessee accompanied by evidence reasonably satisfactory to Lessor that such amount has been paid or is due and payable and is properly a part of such costs and that Lessee has complied with the terms of Section 18 above in connection with the restoration. Prior to the disbursement of any portion of the Net Restoration Amount with respect to a Casualty, Lessee shall provide evidence reasonably satisfactory to Lessor of the payment of restoration expenses by Lessee up to the amount of the insurance deductible applicable to such Casualty. Lessor shall be entitled to keep any portion of the Net Restoration Amount which may be in excess of the cost of restoration, and Lessee shall bear all additional costs, fees and expenses of such restoration in excess of the Net Restoration Amount. If this Lease is terminated with respect to any Property as a result of a Casualty, simultaneously with such termination Lessee shall pay Lessor an amount equal to the insurance deductible applicable to such Casualty.

E. Any loss under any property damage insurance required to be maintained by Lessee shall be adjusted by Lessor and Lessee. Any award relating to a Total Taking or a Partial Taking shall be adjusted by Lessor or, at Lessor's election, Lessee. Notwithstanding the foregoing or any other provisions of this Section to the contrary, if at the time of any Taking or any Casualty or at any time thereafter an Event of Default shall have occurred and be continuing under this Lease, Lessor is hereby authorized and empowered but shall not be obligated, in the name and on behalf of Lessee and otherwise, to file and prosecute Lessee's claim, if any, for an award on account of such Taking or for insurance proceeds on account of such Casualty and to collect such award or proceeds and apply the same, after deducting all costs, fees and expenses incident to the collection thereof, to the restoration of the applicable Property.

F. Notwithstanding the foregoing, nothing in this Section 21 shall be construed as limiting or otherwise adversely affecting the representations, warranties, covenants and characterizations set forth in this Lease, including, without limitation, those provisions set forth in Section 3 of this Lease.

[G. Notwithstanding the foregoing or any other provisions of this Section to the contrary, Lessor and Lessee acknowledge that all awards, compensation or damages to be paid to Lessor or Lessee pursuant to this

Section 21 shall not include any such awards, compensation or damages to which the lessors under the Ground Leases would be entitled.]

22. **Inspection.** Lessor and its authorized representatives shall have the right during normal business hours upon prior written notice (or at any time in the event of an emergency) to enter any of the Properties or any part thereof at reasonable times in order to inspect the same and make photographic or other evidence concerning Lessee's compliance with the terms of this Lease or in order to show the Properties to prospective purchasers and lenders. Lessee hereby waives any claim for damages for any injury or inconvenience to or interference with Lessee's business, any loss of occupancy or quiet enjoyment of any of the Properties and any other loss occasioned by such entry so long as Lessor shall have used reasonable efforts not to unreasonably interrupt Lessee's normal business operations. Lessee shall keep and maintain at the Properties or Lessee's corporate headquarters full, complete and appropriate books of account and records of Lessee's business relating to the Properties in accordance with GAAP. Lessee's books and records relating to the Properties shall during normal business hours be available to Lessor, and its auditors or other authorized representatives and shall show such information as is reasonably necessary to determine Lessee's compliance with this Lease.

23. **Leasehold Mortgage Provisions.** A. Provided no Event of Default shall have occurred and be continuing, Lessee may encumber or otherwise mortgage its leasehold interest in this Lease pursuant to a Leasehold Mortgage in favor of a Lessee Lender; provided, further, that (i) any such Leasehold Mortgage shall, by its express terms, (A) not encumber Lessor's interest in any of the Properties, and (B) be subordinate to any Mortgage (provided, however, that Lessee Lender's interest under such Leasehold Mortgage shall not be disturbed so long as no Event of Default exists), (ii) Lessor, Lessee Lender and Lender, if any, shall enter into a non-disturbance agreement and such other agreements as reasonably requested by Lessee Lender, each in a form reasonably acceptable to such parties and (iii) Lessee shall promptly reimburse Lessor for all reasonable out-of-pocket costs and expenses incurred by Lessor in connection with the agreements requested under the foregoing clause (ii). Upon written request from Lessee, Lessor agrees to deliver an estoppel certificate in favor of Lessee's Lender regarding this Lease, in form and substance reasonably acceptable to Lessor and Lessee Lender. If Lessor delivers to Lessee a notice of default under this Lease, Lessor shall notify any Lessee Lender (without any liability for failure to provide such notification) that has delivered to Lessor a prior written request for such notice, and Lessor shall recognize and accept the performance of any obligation of Lessee hereunder by Lessee's lender (provided said performance occurs within the same cure periods as provided to Lessee under this Lease); provided, however that nothing contained herein shall obligate Lessee Lender to take any such actions.

24. **Default, Remedies and Measure of Damages.**

A. Each of the following shall be an event of default under this Lease (each, an "Event of Default"):

(i) If any representation or warranty of Lessee set forth in this Lease is false in any material respect, or if Lessee renders any written statement which is false but in each case only if such false representation, warranty, statement or account has caused a Material Adverse Effect;

(ii) If any Base Monthly Rental due under this Lease is not paid within five (5) days after the date when due;

(iii) If any other amount owing under this Lease is not paid when due and such failure continues for ten (10) days or more after written notice from Lessor;

(iv) Subject to the provisions of Section 9, if Lessee fails to pay, prior to delinquency, any taxes, assessments or other charges the failure of which to pay will result in the imposition of a lien against any of the Properties pursuant to Applicable Regulations;

(v) If any of the Lessee Parties becomes insolvent within the meaning of the Code, files or notifies Lessor that it intends to file a petition under the Code, initiates a proceeding under any similar law or statute relating to bankruptcy, insolvency, reorganization, winding up or adjustment of debts (collectively, an "Action"), becomes

the subject of either a petition under the Code or an Action, in either event, filed against Lessee which is not dismissed within 60 days after such filing, or is not generally paying its debts as the same become due;

(vi) If Lessee vacates or abandons any of the Properties other than in accordance with the provisions of Section 14 of this Lease;

(vii) If Lessee shall fail to maintain insurance in accordance with the requirements of Section 11 of this Lease;

(viii) With respect to any term, covenant or provision set forth herein which specifically contains a notice requirement and/or cure period, if Lessee shall be in default under such term, covenant or condition after the giving of such notice and/or (as applicable) the expiration of such cure period;

(ix) If Lessee fails to observe or perform any of the other covenants, conditions, or obligations of this Lease (except with respect to a Change of Control); provided, however, if any such failure does not involve the payment of any monetary sum, is not willful or intentional, does not place any rights or property of Lessor in immediate jeopardy, and is within the reasonable power of Lessee to promptly cure after receipt of notice thereof, all as determined by Lessor in its reasonable discretion, then such failure shall not constitute an Event of Default hereunder, unless otherwise expressly provided herein, unless and until Lessor shall have given Lessee notice thereof and a period of 30 days shall have elapsed, during which period Lessee may correct or cure such failure, upon failure of which an Event of Default shall be deemed to have occurred hereunder without further notice or demand of any kind being required. If such failure cannot reasonably be cured within such 30-day period, as determined by Lessor in its reasonable discretion, and Lessee is diligently pursuing a cure of such failure, then Lessee shall have a reasonable period to cure such failure beyond such 30-day period, which shall in no event exceed 120 days after receiving notice of such failure from Lessor. If Lessee shall fail to correct or cure such failure within such 120-day period, an Event of Default shall be deemed to have occurred hereunder without further notice or demand of any kind being required;

(x) Intentionally Deleted;

(xi) If there is a Change of Control for which the consent of Lessor is required pursuant to Section 27 of this Lease and as to which Lessor did not consent; or

(xii) If (x) a default, which is curable by the payment of money, has occurred and is continuing, after any applicable notice or cure period, under any Related Lease, or (y) there is a breach of Section 27 of any Related Lease by the lessee thereunder.

B. Subject to the Lessor's Subordination and Consent and subject to the limitations set forth in Schedule II, upon the occurrence and during the continuance of an Event of Default, with or without notice or demand, except the notice prior to default required under certain circumstances by subsection A. above or such other notice as may be required by statute and cannot be waived by Lessee (all other notices being hereby waived), Lessor shall be entitled to exercise, at its option, concurrently, successively, or in any combination, all remedies available at law or in equity, including without limitation, any one or more of the following as well as the applicable remedies set forth on the attached Schedule I:

(i) To terminate this Lease, whereupon Lessee's right to possession of the Properties shall cease and this Lease, except as to Lessee's liability, shall be terminated.

(ii) To reenter and take possession of any or all of the Properties, and, to the extent permissible and appurtenant to any or all of the Properties, all licenses, area development agreements, permits and other rights or privileges of Lessee pertaining to the use and operation of any or all of the Properties and to expel Lessee and those claiming under or through Lessee, without being deemed guilty in any manner of trespass or becoming liable for any loss or damage resulting therefrom, without resort to legal or judicial process, procedure or action. No notice from Lessor hereunder or under a forcible entry and detainer statute or similar law shall constitute an election by Lessor to terminate this Lease unless such notice specifically so states. If Lessee shall, after default, voluntarily give up

possession of any of the Properties to Lessor, deliver to Lessor or its agents the keys to any of the Properties, or both, such actions shall be deemed to be in compliance with Lessor's rights and the acceptance thereof by Lessor or its agents shall not be deemed to constitute a termination of this Lease. Lessor reserves the right following any reentry and/or reletting to exercise its right to terminate this Lease by giving Lessee written notice thereof, in which event this Lease will terminate as specified in said notice.

(iii) To bring an action against Lessee for any damages sustained by Lessor or any equitable relief available to Lessor.

(iv) To relet any or all of the Properties or any part thereof for such term or terms (including a term which extends beyond the original Lease Term), at such rentals and upon such other terms as Lessor, in its sole discretion, may determine, with all proceeds received from such reletting being applied to the rental and other sums due from Lessee in such order as Lessor may, in its sole discretion, determine, which other sums include, without limitation, all repossession costs, brokerage commissions, reasonable attorneys' fees and expenses, employee expenses, alteration, remodeling and repair costs and expenses of preparing for such reletting. Except to the extent required by applicable law, Lessor shall have no obligation to relet any of the Properties or any part thereof and shall in no event be liable for refusal or failure to relet any of the Properties or any part thereof, or, in the event of any such reletting, for refusal or failure to collect any rent due upon such reletting, and no such refusal or failure shall operate to relieve Lessee of any liability under this Lease or otherwise to affect any such liability. Lessor reserves the right following any reentry and/or reletting to exercise its right to terminate this Lease by giving Lessee written notice thereof, in which event this Lease will terminate as specified in said notice.

(v) In connection with the termination of Lessee's right to possession of any of the Properties, (x) to recover from Lessee all rent and other monetary sums then due and owing under this Lease and (y) to accelerate and recover from Lessee the present value (discounted at a rate of United States Treasuries with a maturity closest to the remaining Lease Term) of all rent and other monetary sums scheduled to become due and owing under this Lease after the date of such breach for the entire original scheduled Lease Term, less the fair and reasonable rental value of the Properties.

(vi) To recover from Lessee all reasonable costs and expenses, including reasonable attorneys' fees, court costs, expert witness fees, costs of tests and analyses, travel and accommodation expenses, deposition and trial transcripts, copies and other similar costs and fees, paid or incurred by Lessor as a result of such breach, regardless of whether or not legal proceedings are actually commenced.

(vii) To immediately or at any time thereafter, and with or without notice, at Lessor's sole option but without any obligation to do so, correct such breach or default and charge Lessee all costs and expenses incurred by Lessor therein. Any sum or sums so paid by Lessor, together with interest at the Default Rate, shall be deemed to be Additional Rental hereunder and shall be immediately due from Lessee to Lessor. Any such acts by Lessor in correcting Lessee's breaches or defaults hereunder shall not be deemed to cure said breaches or defaults or constitute any waiver of Lessor's right to exercise any or all remedies set forth herein.

(viii) Intentionally Omitted.

(ix) To seek any equitable relief available to Lessor, including, without limitation, the right of specific performance.

All powers and remedies given by this Section to Lessor, subject to applicable law, shall be cumulative and not exclusive of one another or of any other right or remedy or of any other powers and remedies available to Lessor under this Lease, by judicial proceedings or otherwise, to enforce the performance or observance of the covenants and agreements of Lessee contained in this Lease, and no delay or omission of Lessor to exercise any right or power accruing upon the occurrence and during the continuance of any Event of Default shall impair any other or subsequent Event of Default or impair any rights or remedies consequent thereto. Every power and remedy given by this Section or by law to Lessor may be exercised from time to time, and as often as may be deemed expedient, by Lessor, subject at all times to Lessor's right in its sole judgment to discontinue any work commenced by Lessor or change any course of action undertaken by Lessor.

If Lessee shall fail to observe or perform any of its obligations under this Lease or in the event of an emergency, then, without waiving any Event of Default which may result from such failure or emergency, Lessor may, but without any obligation to do so, take all actions, including, without limitation, entry upon any or all of the Properties to perform Lessee's obligations, immediately and without notice in the case of an emergency and upon five days written notice to Lessee in all other cases. All expenses incurred by Lessor in connection with performing such obligations, including, without limitation, reasonable attorneys' fees and expenses, together with interest at the Default Rate from the date any such expenses were incurred by Lessor until the date of payment by Lessee, shall constitute Additional Rental and shall be paid by Lessee to Lessor upon demand.

25. ***Liens; Mortgages, Subordination, Nondisturbance and Attornment.*** Lessor's interest in this Lease and/or any of the Properties shall not be subordinate to any liens or encumbrances placed upon any of the Properties by or resulting from any act of Lessee, and nothing herein contained shall be construed to require such subordination by Lessor. Lessee shall keep the Properties free from any liens for work performed, materials furnished or obligations incurred by Lessee.

This Lease at all times shall automatically be subordinate to the lien of any and all ground leases, mortgages, deeds to secure debt and trust deeds now or hereafter placed upon any of the Properties by Lessor, and Lessee covenants and agrees to execute and deliver, upon demand, such further instruments subordinating this Lease to the lien of all such ground leases, mortgages, deeds to secure debt or trust deeds as shall be reasonably requested desired by Lessor, or any present or proposed mortgagees or lenders under deeds to secure debt or trust deeds, upon the condition that Lessee shall have the right and such instrument shall provide that Lessee has the right to remain in possession of the Properties under the terms of this Lease and Lessee's use and enjoyment of the Properties shall not be disturbed, notwithstanding any default in any or all such mortgages or trust deeds, or after foreclosure thereof, so long as no Event of Default shall have occurred and be continuing after the expiration of the notice and cure provided to Lessee and Lessee Lender.

If any landlord, mortgagee, receiver, Lender or other secured party validly exercises its right to elect to have this Lease and the interest of Lessee hereunder be superior to any of such ground lease, mortgage, deed to secure debt or trust deed and evidences such election by written notice given to Lessee, then this Lease and the interest of Lessee hereunder shall be deemed superior to any such ground lease, mortgage, deed to secure debt or trust deed, whether this Lease was executed before or after such ground lease, mortgage, deed to secure debt or trust deed and in that event such landlord, mortgagee, receiver, Lender or other secured party shall have the same rights with respect to this Lease as if it had been executed and delivered prior to the execution and delivery of such ground lease, mortgage, deed to secure debt or trust deed and had been assigned to such landlord, mortgagee, receiver, Lender or other secured party.

Although the foregoing provisions shall be self-operative and no future instrument of subordination shall be required, upon request by Lessor, Lessee shall execute and deliver whatever instruments may be reasonably required for such purposes in a form reasonably acceptable to Lessor and Lessee.

In the event any purchaser or assignee of Lender at a foreclosure sale acquires title to any of the Properties, or in the event Lender or any assignee otherwise succeeds to the rights of Lessor as landlord under this Lease, Lessee shall attorn to Lender or such purchaser or assignee, as the case may be (a "Successor Lessor"), and recognize the Successor Lessor as lessor under this Lease, and, subject to the provisions of this Section, this Lease shall continue in full force and effect as a direct lease between the Successor Lessor and Lessee, provided that the Successor Lessor shall only be liable for any obligations of the lessor under this Lease which accrue after the date that such Successor Lessor acquires title. The foregoing provision shall be self-operative and effective without the execution of any further instruments.

Lessee shall give written notice to any lender of Lessor having a recorded lien upon any of the Properties or any part thereof of which Lessee has been notified of any breach or default by Lessor of any of its obligations under this Lease simultaneously with the giving of such notice to Lessor, and Lessee shall give such lender at least 60 days beyond any notice period to which Lessor might be entitled to cure such default before Lessee may exercise any remedy with respect thereto. Upon request by Lessor, Lessee shall also provide Lessee's most recent audited financial statements to Lessor or any such lender and certify the continuing accuracy of such financial statements in such manner as Lessor or such lender may request.

26. ***Estoppel Certificate.*** Within 20 days following any written request which Lessor, Lender (on behalf of Lessor) or Lessee (the "Requesting Party") may make from time to time, to the other party to this Lease (the "Responding Party"), the Responding Party shall execute and deliver to the Requesting Party a statement certifying: (i) the commencement and expiration dates of this Lease; (ii) the fact that this Lease is unmodified and in full force and effect (or, if there have been modifications hereto, that this Lease is in full force and effect, and stating the date and nature of such modifications); (iii) the date to which the rental and other sums payable under this Lease have been paid; (iv) that there are no current defaults under this Lease by the Responding Party or, to the Responding Party's knowledge, the Requesting Party, except as specified therein; (v) the capacity of the person executing such certificate and that such person is duly authorized to executed the same on behalf of the Responding Party; and (vi) such other matters reasonably requested by such Requesting Party. Lessor and Lessee intend that any statement delivered pursuant to this Section may be relied upon by any mortgagee, beneficiary, purchaser or prospective purchaser of any of the Properties or any interest therein. Responding Party's failure to deliver such statement within such time shall be conclusive upon Responding Party that: (i) this Lease is unmodified and in full force and effect without modification except as may be represented by the Requesting Party; (ii) that there are no uncured defaults in the Requesting Party's performance and (iii) that not more than one (1) month's rental has been paid in advance.

27. ***Assignment and Subletting.***

A. Lessor shall have the right to sell or convey some or all of the Properties subject to this Lease or to assign its right, title and interest as Lessor under this Lease in whole or in part. In the event of any such sale or assignment other than a security assignment, Lessee shall attorn to such purchaser or assignee and Lessor shall be relieved, from and after the date of such transfer or conveyance, of liability for the performance of any obligation of Lessor contained herein as to such Properties sold or conveyed, except for obligations or liabilities accrued prior to such assignment or sale.

B. Without the prior written consent of Lessor, and except as provided in Section 27.C below (any one of the following, a "Consent-Needed Transaction"): (i) Lessee shall not assign, transfer, convey, pledge or mortgage this Lease or any interest therein, whether by operation of law or otherwise, in whole or in part; (ii) no Change of Control shall occur; (iii) no interest in Lessee shall be pledged, encumbered, hypothecated or assigned as collateral for any obligation of Lessee; and (iv) Lessee shall not sublet all or any part of a Property. No assignment of this Lease or subletting of a Property shall relieve Lessee of any of its obligations under this Lease. If Lessor and any assignee of Lessee's interest in this Lease (other than an assignee that is an Affiliate of Lessee) modify or amend this Lease without Lessee's consent so as to increase the obligations of Lessee, Lessee's liability shall not be increased, but shall continue as it existed prior to the modification or amendment. Lessor shall approve or deny such request for consent as soon as practicable but no later than thirty (30) days after receipt of Lessee's notice to Lessor requesting consent together with all materials and any other information (and in such detail) as may be reasonably necessary to evaluate the proposed transaction and the affected parties. Lessor's approval of any Consent-Needed Transaction shall be deemed to have been given if a request for approval is submitted to Lessor and Lessor does not respond by approving such proposed Consent-Needed Transaction or stating in reasonable details its objections to such proposed Consent-Needed Transaction within thirty (30) days after Lessor's receipt of such request for approval and all materials and information required by the immediately preceding sentence.

C. Notwithstanding any provision to the contrary in this Lease, Lessee or Lessee's Affiliate shall have the right, without Lessor's consent, at any one time or multiple times during the Lease Term, to:

- (i) assign this Lease to an Affiliate of Lessee;
- (ii) assign this Lease to a Permitted Transferee;
- (iii) consummate a public offering of common stock or other equity interests of Lessee, or any direct or indirect controlling party of any of them (including any public offering of common stock or other equity interests of Lessee, or any direct or indirect controlling party of any of them that may result in a Change of Control) on a nationally or regionally recognized exchange, and following any such public offering, transfers of shares on a nationally or regionally recognized exchange shall be permitted; or

(iv) sublease, license, or enter into a concession agreement, kiosk agreement or occupancy agreement of all or any part of the Properties if the use contemplated under any such sublease, license, concession agreement, kiosk agreement or occupancy agreement does not breach the provisions of Section 14 hereof and the term of such sublease, license, concession agreement, kiosk agreement or occupancy agreement does not exceed the Lease Term, as the same may have been extended;

(v) encumber, pledge, hypothecate or otherwise mortgage Lessee's interest in the leasehold estate create by this Lease, subject to the terms of Section 23;

(vi) encumber, pledge, hypothecate or otherwise collaterally assign any interest in Lessee as collateral for any obligation to Lessee Lender; or

(vii) have any Change of Control provided that, upon such Change of Control, Lessee is a Permitted Transferee;

provided that (w) within ten (10) days after Lessee's entering into any permitted sublease, license, concession agreement, kiosk agreement or occupancy agreement, or assignment described in subsections (i) through (vii) of this Section 27.C, Lessee shall provide Lessor with (1) written notice thereof, together with a copy of the executed sublease, license, concession agreement, kiosk agreement or occupancy agreement, or assignment, (2) evidence of the insurance of any such counterparty that is to occupy any portion of the Properties under such sublease, license, concession agreement, kiosk agreement or occupancy agreement, which shall include Lessor being named as an additional insured or loss payee, as applicable, on such insurance, and (3) written certification to Lessor that (A) the assignee or the counterparty that is to occupy any Property under such sublease, license, concession agreement, kiosk agreement or occupancy agreement or any person who owns directly or indirectly any interest in such assignee or counterparty, is not an individual or entity whose property or interests are subject to being blocked under any of the OFAC Laws and Regulations or is otherwise in violation of the OFAC Laws and Regulations, and (B) such assignee or counterparty has taken reasonable measures to assure that any individual or entity who owns directly or indirectly any interest in such assignee or counterparty, is not an individual or entity whose property or interests are subject to being blocked under any of the OFAC Laws and Regulations or is otherwise in violation of the OFAC Laws and Regulations; provided, however, the covenant contained in this clause (3) shall not apply to any Person to the extent that such Person's interest is in or through a U.S. Publicly-Traded Entity, (x) that there are no material uncured Events of Default at the time of consummating any of the above transactions, (y) with respect to an assignment, the transferee of Lessee shall assume the terms, conditions and provisions of this Lease and (z) no assignment of this Lease or subletting of the any of the Properties shall relieve Lessee of any of its obligations under this Lease.

D. *Non-Disturbance of Subtenants.* Lessor shall execute and deliver a Non-Disturbance Agreement with respect to any Sublease. The term "Sublease" means a sublease (A) to a national or regional restaurant operator (a "national retail operator" shall mean a party that operates no less than fifty (50) restaurants under the same trade name as will be used for the subleased premises and a "regional retail operator" shall mean a party that operates no less than fifty (50) restaurants under the same trade name as will be used for the subleased premises in the same geographic region as the subleased premises), (B) with the subleased premises constituting the entire applicable Property, (C) with base rent thereunder being in an amount satisfactory to Lessor and such sublease shall obligate the subtenant to pay all other amounts payable by Lessee pursuant to this Lease with respect to the applicable Property, and (D) providing that:

(i) the subtenant shall cure such other defaults under this Lease with respect to the subleased premises susceptible of cure by such subtenant (for which the cure periods shall be the lesser of those set forth in the sublease or five (5) days for monetary defaults and a single thirty (30) day period for non-monetary defaults subject to the provisions in this Lease relating to expedited rights to protect the real estate or Lessor's interest therein, or to prevent injury or damage to persons or property);

(iii) Lessor shall have no obligation to such subtenant to construct any improvements for such subtenant or perform any obligation of Lessee as sublandlord under such sublease;

(iv) Lessor shall have no obligation to cure any default of Lessee as sublandlord existing as of the date on which the Lessor becomes the "sublandlord" under the Sublease; and

(v) in no event shall Lessor (1) be bound by any payment made in advance except to the extent that Lessor has received compensation from Lessee; (2) be liable for any previous act or omission by Lessee, as sublandlord under the sublease; (3) be liable for the repayment of any security deposit paid by subtenant unless Lessor has received such security deposit; (4) be bound by any provision in the sublease which creates any rights or remedies in the subtenant which are greater than the rights and remedies of Lessee under this Lease; (5) be bound by any provision in the sublease which creates any right or remedies in the landlord thereunder which are lesser than the rights and remedies of Lessor under this Lease; (6) be bound by any provision in the sublease which creates greater obligations upon the landlord thereunder than the obligations of Lessor under this Lease; or (7) be bound by any provision in the sublease which creates lesser obligations upon the subtenant thereunder than the obligations of Lessee under this Lease.

E. *Cure Rights Upon Assignee Default.* Upon a default by an assignee of Lessee's interest in this Lease, Lessor shall not exercise any rights or remedies on account of such default unless Lessor gives notice of such default to the Lessee named herein or its successor by merger, consolidation or stock sale ("Original Lessee"), as well as the tenant in possession, and the opportunity to cure such default within the period of time permitted under the default provisions of this Lease. If this Lease is terminated by Lessor following such notice, then the Original Lessee shall not be liable for any obligations under this Lease unless at the time of termination, Lessor offers the Original Lessee a new lease for the balance of the Lease Term upon the provisions contained in this Lease and any modification of this Lease consented to by Original Lessee, conditioned upon the agreement of the Original Lessee to cure any then existing defaults under this Lease which are susceptible to cure by the Original Lessee and which are specified in Lessor's offer to Original Lessee.

28. *Option To Extend.*

A. Lessee, provided no Event of Default has occurred and is continuing at the time of exercise or at the expiration of the Lease Term or, if applicable, the preceding extension of the Lease Term, shall have the option to continue this Lease in effect with respect to all of, or any of, but not less than ninety percent (90%) of, the Properties (the "Renewed Properties"), in the Lessee's sole discretion, for up to four (4) additional successive periods of five (5) years each in accordance with the terms and provisions of this Lease then in effect, including, without limitation, adjustments in the Base Annual Rental during such renewal term in accordance with the provisions of Section 5, except as provided in Section 28.B.

B. Notwithstanding the preceding subsection A, for all of the renewal terms, the Base Annual Rental as of the commencement date of such renewal terms shall be equal to:

(i) if the renewal term is for all of the Properties, the greater of (x) the then-current Base Annual Rental multiplied by 102%, and (y) the annual fair market rental value of all of the Properties as of the commencement of such renewal term, and all other provisions under this Lease shall remain the same during such extension periods; or

(ii) if the renewal term is for less than all of the Properties, the greater of (x) the then-current Base Annual Rental multiplied by 95%, and (y) the annual fair market rental value of the Renewed Properties as of the commencement of such renewal term, and all other provisions under this Lease shall remain the same during such extension periods.

Such fair market rental value of the Renewed Properties shall be determined as follows. Within 45 days after Lessee exercises the applicable renewal term, Lessor shall, at Lessee's expense, cause an appraisal of the fair market value of the Renewed Properties to be made by an independent MAI appraiser. If within 20 days after being notified of the result of such appraisal Lessee elects to reject that appraisal, then Lessor shall nominate to Lessee a list of not less than three independent MAI appraisers who are experienced with appraising property similar to the Renewed Properties, and Lessee shall select one such appraiser. Within 30 days of such selection an appraisal of the fair market value of the Renewed Properties shall be made by that appraiser and such determination shall be conclusive for purposes hereof.

C. Lessee shall exercise the first extension option by giving notice to Lessor of Lessee's intention to do so not earlier than eighteen (18) months or later than twelve (12) months prior to the expiration of the Initial Lease Term which notice shall include a listing of the Renewed Properties. If the first extension option is exercised by Lessee, Lessee shall exercise the second extension option by giving notice to Lessor of Lessee's intention to do so not earlier than eighteen (18) months or later than twelve (12) months prior to the expiration of the first extension option which notice shall include a listing of the Renewed Properties. If the first two extension options are exercised, Lessee shall exercise the third extension option by giving notice to Lessor of Lessee's intention to do so not earlier than eighteen (18) months or later than twelve (12) months prior to the expiration of the second extension option which notice shall include a listing of the Renewed Properties. If the first three extension options are exercised, Lessee shall exercise the fourth extension option by giving notice to Lessor of Lessee's intention to do so not earlier than eighteen (18) months or later than twelve (12) months prior to the expiration of the third extension option which notice shall include a listing of the Renewed Properties.

29. **Notices.** All notices, consents, approvals or other instruments required or permitted to be given by either party pursuant to this Lease shall be in writing and given by (i) hand delivery, (ii) facsimile, (iii) express overnight delivery service or (iv) certified or registered mail, return receipt requested, and shall be deemed to have been delivered upon (a) receipt, if hand delivered, (b) transmission, if delivered by facsimile, (c) the next Business Day, if delivered by express overnight delivery service, or (d) the third Business Day following the day of deposit of such notice with the United States Postal Service, if sent by certified or registered mail, return receipt requested. Notices shall be provided to the parties and addresses (or facsimile numbers, as applicable) specified below:

If to Lessee:

Attention: _____
Telephone: _____
Telecopy: _____

with a copy to:

Golden Gate Private Equity, Inc.
One Embarcadero Center, 39th Floor
San Francisco, CA 94111
Attention: Joshua Olshansky
Telephone: (415) 983-2728
Telecopy: (415) 983-2828

If to Lessor:

Attn: Legal Department
2325 E. Camelback Road, Suite 1100
Phoenix, AZ 85016
Telephone: (602) 778-8700
Telecopy: (480) 449-7012

or to such other address or such other person as either party may from time to time hereafter specify to the other party in a notice delivered in the manner provided above.

30. **Holding Over.** If Lessee remains in possession of any of the Properties after the expiration of the term hereof, Lessee, at Lessor's option and within Lessor's sole discretion, may be deemed a tenant on a month-to-month basis and shall continue to pay rentals and other sums in the amounts herein provided, except that the Base Monthly Rental then in effect shall be multiplied by one hundred twenty-five percent (125%), and comply with all the terms of this Lease; provided that nothing herein nor the acceptance of rent by Lessor shall be deemed a consent to such holding over. Lessee shall defend, indemnify, protect and hold the Indemnified Parties harmless from and against any and all Losses resulting from Lessee's failure to surrender possession upon the expiration of the Lease Term, including, without limitation, any claims made by any succeeding lessee.

31. **Subordination of Lessor's Lien.** Lessor agrees to subordinate, pursuant to the Lessor's Subordination and Consent, any statutory or common law landlord's lien of Lessor in the Personal Property, if any,

to any lien or security interest that Lessee Lender may have against or in the Personal Property. Lessor agrees to execute and Lessee shall execute and cause Lessee Lender to execute such documents as Lessor, Lessee or Lessee Lender may reasonably require to evidence such subordination (the "Lessor's Subordination and Consent") provided that the form and substance of any such subordination is reasonably satisfactory to Lessor and Lessee promptly reimburses Lessor for all reasonable out-of-pocket costs and expenses incurred by Lessor in connection with such subordination, including, without limitation, reasonable attorneys' fees.

32. **Removal of Personal Property.** At the expiration of the Lease Term, Lessee may remove all Personal Property from the Properties. Lessee shall repair any damage caused by such removal and shall leave the Properties broom clean and in good and working condition and repair inside and out. Subject to the provisions set forth in Section 31, any property of Lessee left on the Properties on the thirtieth day following the expiration of the Lease Term shall, at Lessor's option, automatically and immediately become the property of Lessor.

33. **Financial Statements.** Lessee shall deliver to Lessor, (A) (i) no later than one hundred twenty (120) days after the end of each fiscal year, commencing with the fiscal year ending on or about June 30, 2015, complete audited financial statements of Lessee's fiscal year, including a balance sheet, profit and loss statement, statement of cash flows and all other related schedules for the fiscal period then ended, and (ii) income statements for the business at each of the Properties; and (B) no later than forty-five (45) days after the end of each quarter during the fiscal year commencing with the fiscal quarter commencing on July 1, 2014: (i) quarterly financial statements of Lessee, including a balance sheet, profit and loss statement, statement of cash flows and all other related schedules for the fiscal period then ended; (ii) income statements for the business at each of the Properties; and (iii) unit level quarterly sales reports for each of the Properties. All such financial statements shall be prepared in accordance with GAAP from period to period, and shall be certified to be accurate and complete by Lessee's Chief Financial Officer, Chief Executive Officer or Chief Accounting Officer. Lessee understands that Lessor will rely upon such financial statements and Lessee represents that such reliance is reasonable. In the event the property and business at the Properties is ordinarily consolidated with other business for financial statement purposes, such financial statements shall be prepared on a consolidated basis showing separately the sales, profits and losses, assets and liabilities pertaining to the Properties with the basis for allocation of overhead of other charges being clearly set forth. During each of Lessee's first four (4) full fiscal quarters following the Effective Date of this Lease, at the request of Lessor, Lessee's senior management shall be obligated to participate in a conference call with Lessor to answer questions from representatives of Lessor, such conference call to be on a date and time to be reasonably determined by Lessor and Lessee. Following the Lessee's first four (4) full fiscal quarters following the Effective Date of this Lease, at the request of Lessor, Lessee's senior management shall be obligated to participate in annual conference calls with Lessor to answer questions from representatives of Lessor, such conference calls to be on a date and time to be reasonably determined by Lessor and Lessee; provided that, if the FCCR is less than or equal to 1.50:1.00, tested quarterly on a trailing twelve (12) months basis, at Lessor's request, such conference calls shall be held quarterly. The confidentiality requirements governing and attendance limits on any conference call provided for by this Section 33 shall be determined by the Lessee in its reasonable discretion.

34. **Force Majeure.** Any prevention, delay or stoppage due to strikes, lockouts, acts of God, enemy or hostile governmental action, civil commotion, fire or other casualty beyond the control of the party obligated to perform shall excuse the performance by such party for a period equal to any such prevention, delay or stoppage, except the obligations imposed with regard to rental and other monies to be paid by Lessee pursuant to this Lease and any indemnification obligations imposed upon Lessee under this Lease.

35. **Time is of the Essence.** Time is of the essence with respect to each and every provision of this Lease in which time is a factor.

36. **Lessor's Liability.** Notwithstanding anything to the contrary provided in this Lease, it is specifically understood and agreed, such agreement being a primary consideration for the execution of this Lease by Lessor, that (i) there shall be absolutely no personal liability on the part of Lessor, its successors or assigns and the trustees, members, partners, shareholders, officers, directors, employees and agents of Lessor and its successors or assigns, to Lessee with respect to any of the terms, covenants and conditions of this Lease, (ii) Lessee waives all claims, demands and causes of action against the trustees, members, partners, shareholders, officers, directors, employees and agents of Lessor and its successors or assigns in the event of any breach by Lessor of any of the terms, covenants and conditions of this Lease to be performed by Lessor, and (iii) Lessee shall look solely to the

Properties for the satisfaction of each and every remedy of Lessee in the event of any breach by Lessor of any of the terms, covenants and conditions of this Lease to be performed by Lessor, or any other matter in connection with this Lease or the Properties, such exculpation of liability to be absolute and without any exception whatsoever.

37. **Consent of Lessor.** A. Unless specified otherwise herein, Lessor's consent to any request of Lessee may be conditioned or withheld in Lessor's reasonable discretion.

B. It is understood and agreed that to the extent Lessor is required to obtain the consent, approval, agreement or waiver of Lender with respect to a matter for which Lessor's approval has been requested under this Lease, Lessor shall in no event be deemed to have unreasonably withheld Lessor's consent, approval, agreement or waiver thereof if Lender shall not have given its approval if required.

38. **Waiver and Amendment.** No provision of this Lease shall be deemed waived or amended except by a written instrument unambiguously setting forth the matter waived or amended and signed by the party against which enforcement of such waiver or amendment is sought. Waiver of any matter shall not be deemed a waiver of the same or any other matter on any future occasion. No acceptance by Lessor of an amount less than the monthly rent and other payments stipulated to be due under this Lease shall be deemed to be other than a payment on account of the earliest such rent or other payments then due or in arrears nor shall any endorsement or statement on any check or letter accompanying any such payment be deemed a waiver of Lessor's right to collect any unpaid amounts or an accord and satisfaction.

39. **Successors Bound.** Except as otherwise specifically provided herein, the terms, covenants and conditions contained in this Lease shall bind and inure to the benefit of the respective heirs, successors, executors, administrators and assigns of each of the parties hereto.

40. **No Merger.** The voluntary or other surrender of this Lease by Lessee, or a mutual cancellation thereof, shall not result in a merger of Lessor's and Lessee's estates, and shall, at the option of Lessor, either terminate any or all existing subleases or subtenancies, or operate as an assignment to Lessor of any or all of such subleases or subtenancies.

41. **Captions.** Captions are used throughout this Lease for convenience of reference only and shall not be considered in any manner in the construction or interpretation hereof.

42. **Severability.** The provisions of this Lease shall be deemed severable. If any part of this Lease shall be held unenforceable by any court of competent jurisdiction, the remainder shall remain in full force and effect, and such unenforceable provision shall be reformed by such court so as to give maximum legal effect to the intention of the parties as expressed therein.

43. **Characterization.** A. It is the intent of the parties hereto that the business relationship created by this Lease and any related documents is solely that of a long-term commercial lease between landlord and tenant and has been entered into by both parties in reliance upon the economic and legal bargains contained herein. None of the agreements contained herein, is intended, nor shall the same be deemed or construed, to create a partnership between Lessor and Lessee, to make them joint venturers, to make Lessee an agent, legal representative, partner, subsidiary or employee of Lessor, nor to make Lessor in any way responsible for the debts, obligations or losses of Lessee.

B. Lessor and Lessee acknowledge and warrant to each other that each has been represented by independent counsel and has executed this Lease after being fully advised by said counsel as to its effect and significance. This Lease shall be interpreted and construed in a fair and impartial manner without regard to such factors as the party which prepared the instrument, the relative bargaining powers of the parties or the domicile of any party. Whenever in this Lease any words of obligation or duty are used, such words or expressions shall have the same force and effect as though made in the form of a covenant.

44. **Easements.** During the Lease Term Lessor shall have the right to grant utility easements on, over, under and above any of the Properties without the prior consent of Lessee, provided that such easements will not materially interfere with Lessee's long-term use of such Properties.

45. **Bankruptcy.** A. As a material inducement to Lessor executing this Lease, Lessee acknowledges and agrees that Lessor is relying upon (i) the financial condition and specific operating experience of Lessee and Lessee's obligation to use each of the Properties specifically in accordance with system-wide requirements imposed from time to time on Permitted Concepts, (ii) Lessee's timely performance of all of its obligations under this Lease as to all Properties notwithstanding the entry of an order for relief under the Code for Lessee and (iii) all defaults under this Lease as to all Properties being cured promptly and this Lease being assumed within 60 days of any order for relief entered under the Code for Lessee, or this Lease being rejected within such 60 day period and the Properties surrendered to Lessor.

Accordingly, in consideration of the mutual covenants contained in this Lease and for other good and valuable consideration, Lessee hereby agrees that:

(i) All obligations that accrue or become due under this Lease (including the obligation to pay rent), from and after the date that an Action is commenced shall be timely performed exactly as provided in this Lease and any failure to so perform shall be harmful and prejudicial to Lessor;

(ii) Any and all obligations under this Lease that accrue or become due from and after the date that an Action is commenced and that are not paid as required by this Lease shall, in the amount of such rents, constitute administrative expense claims allowable under the Code with priority of payment at least equal to that of any other actual and necessary expenses incurred after the commencement of the Action;

(iii) Any extension of the time period within which Lessee may assume or reject this Lease without an obligation to cause all obligations accruing or coming due under this Lease from and after the date that an Action is commenced to be performed as and when required under this Lease shall be harmful and prejudicial to Lessor;

(iv) Any time period designated as the period within which Lessee must cure all defaults and compensate Lessor for all pecuniary losses which extends beyond the date of assumption of this Lease shall be harmful and prejudicial to Lessor;

(v) Any assignment of this Lease must result in all terms and conditions of this Lease being assumed by the assignee without alteration or amendment, and any assignment which results in an amendment or alteration of the terms and conditions of this Lease without the express written consent of Lessor shall be harmful and prejudicial to Lessor;

(vi) Any proposed assignment of this Lease to an assignee: (a) that will not use the Properties specifically as a Permitted Concept, (b) that does not possess financial condition, operating performance and experience characteristics equal to or better than the financial condition, operating performance and experience of the Lessee Parties as of the Effective Date, or (c) that does not provide guarantors of the Lessee's obligations hereunder with financial condition equal to or better than the financial condition of the original guarantors, if any, of this Lease as of the Effective Date, shall be harmful and prejudicial to Lessor;

(vii) The rejection (or deemed rejection) of this Lease for any reason whatsoever shall constitute cause for immediate relief from the automatic stay provisions of the Code, and Lessee stipulates that such automatic stay shall be lifted immediately and possession of the Properties will be delivered to Lessor immediately without the necessity of any further action by Lessor; and

(viii) This Lease shall at all times be treated as consistent with the specific characterizations set forth in Section 3 of this Lease, and assumption or rejection of this Lease shall be (a) in its entirety, (b) for all of the Properties, and (c) in strict accordance with the specific terms and conditions of this Lease.

B. No provision of this Lease shall be deemed a waiver of Lessor's rights or remedies under the Code or applicable law to oppose any assumption and/or assignment of this Lease, to require timely performance of Lessee's obligations under this Lease, or to regain possession of the Properties as a result of the failure of Lessee to comply with the terms and conditions of this Lease or the Code.

C. Notwithstanding anything in this Lease to the contrary, all amounts payable by Lessee to or on behalf of Lessor under this Lease, whether or not expressly denominated as such, shall constitute "rent" for the purposes of the Code.

D. For purposes of this Section addressing the rights and obligations of Lessor and Lessee in the event that an Action is commenced, the term "Lessee" shall include Lessee's successor in bankruptcy, whether a trustee, Lessee as debtor in possession or other responsible person.

46. **No Offer.** No contractual or other rights shall exist between Lessor and Lessee with respect to the Properties until both have executed and delivered this Lease, notwithstanding that deposits may have been received by Lessor and notwithstanding that Lessor may have delivered to Lessee an unexecuted copy of this Lease. The submission of this Lease to Lessee shall be for examination purposes only, and does not and shall not constitute a reservation of or an option for Lessee to lease or otherwise create any interest on the part of Lessee in the Properties.

47. **Other Documents.** Each of the parties agrees to do, execute, acknowledge and deliver or cause to be done, executed, acknowledged and delivered all such further acts, documents and assurances as may be reasonably required or deemed advisable to carry into effect the purposes of this Lease, to perfect any lien or security interest granted in this Lease and for the better assuring and confirming of all of Lessor's rights, powers and remedies under this Lease.

48. **Attorneys' Fees.** In the event of any judicial or other adversarial proceeding between the parties concerning this Lease, to the extent permitted by law, the prevailing party shall be entitled to recover all of its reasonable attorneys' fees and other costs in addition to any other relief to which it may be entitled. In addition, Lessor shall, upon demand, be entitled to all reasonable attorneys' fees and all other reasonable costs incurred in the preparation and service of any notice or demand hereunder, whether or not a legal action is subsequently commenced. For purposes of this Section 48, a party will be considered to be the "prevailing party" if (a) such party initiated the litigation and substantially obtained the relief which it sought (whether by judgment, voluntary agreement or action of the other party, trial, or alternative dispute resolution process), (b) such party did not initiate the litigation and either (i) received a judgment in its favor, or (ii) did not receive judgment in its favor, but the party receiving the judgment did not substantially obtain the relief which it sought, or (c) the other party to the litigation withdrew its claim or action without having substantially received the relief which it was seeking.

49. **Entire Agreement.** This Lease and any other instruments or agreements referred to herein constitute the entire agreement between the parties with respect to the subject matter hereof, and there are no other representations, warranties or agreements except as herein provided. Without limiting the foregoing, Lessee specifically acknowledges that neither Lessor nor any agent, officer, employee or representative of Lessor has made any representation or warranty regarding the projected profitability of the business to be conducted on the Properties. Furthermore, Lessee acknowledges that Lessor did not prepare or assist in the preparation of any of the projected figures used by Lessee in analyzing the economic viability and feasibility of the business to be conducted by Lessee at the Properties.

50. **Forum Selection; Jurisdiction; Venue; Choice of Law.** For purposes of any action or proceeding arising out of this Lease, the parties hereto expressly submit to the jurisdiction of all federal and state courts located in the State of New York. Lessee and Lessor consent that they may be served with any process or paper by registered mail or by personal service within or without the State of New York in accordance with applicable law. Furthermore, Lessee and Lessor waive and agree not to assert in any such action, suit or proceeding that they are not personally subject to the jurisdiction of such courts, that the action, suit or proceeding is brought in an inconvenient forum or that venue of the action, suit or proceeding is improper. The creation of this Lease and the rights and remedies of Lessor with respect to the Properties, as provided herein and by the laws of the states in which the Properties are located, as applicable, shall be governed by and construed in accordance with the internal laws of the states in which the Properties are located, as applicable, without regard to principles of conflicts of law. With

respect to other provisions of this Lease, this Lease shall be governed by the internal laws of the State of New York, without regard to its principles of conflicts of law. Nothing contained in this Section shall limit or restrict the right of Lessor and Lessee to commence any proceeding in the federal or state courts located in the states in which the Properties are located to the extent Lessor or Lessee deems such proceeding necessary or advisable to exercise remedies available under this Lease.

51. **Counterparts.** This Lease may be executed in one or more counterparts, each of which shall be deemed an original.

52. **Memorandum of Master Lease.** Concurrently with the execution of this Lease, Lessor and Lessee are executing the Memorandum to be recorded in the applicable real property records with respect to each of the Properties. Further, upon Lessor's request, Lessee agrees to execute and acknowledge a termination of lease and/or quit claim deed in recordable form with respect to each of the Properties to be held by Lessor until the expiration or sooner termination of the Lease Term.

53. **No Brokerage.** Lessor and Lessee represent and warrant to each other that they have had no conversation or negotiations with any broker concerning the leasing of the Properties. Each of Lessor and Lessee agrees to protect, indemnify, save and keep harmless the other, against and from all liabilities, claims, losses, costs, damages and expenses, including attorneys' fees, arising out of, resulting from or in connection with their breach of the foregoing warranty and representation.

54. **Waiver of Jury Trial and Punitive, Exemplary and Speculative Damages.** LESSOR AND LESSEE HEREBY KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVE THE RIGHT EITHER MAY HAVE TO A TRIAL BY JURY WITH RESPECT TO ANY AND ALL ISSUES PRESENTED IN ANY ACTION, PROCEEDING, CLAIM OR COUNTERCLAIM BROUGHT BY EITHER OF THE PARTIES HERETO AGAINST THE OTHER OR ITS SUCCESSORS WITH RESPECT TO ANY MATTER ARISING OUT OF OR IN CONNECTION WITH THIS LEASE, THE RELATIONSHIP OF LESSOR AND LESSEE, LESSEE'S USE OR OCCUPANCY OF ANY OF THE PROPERTIES, AND/OR ANY CLAIM FOR INJURY OR DAMAGE, OR ANY EMERGENCY OR STATUTORY REMEDY. THIS WAIVER BY THE PARTIES HERETO OF ANY RIGHT EITHER MAY HAVE TO A TRIAL BY JURY HAS BEEN NEGOTIATED AND IS AN ESSENTIAL ASPECT OF THEIR BARGAIN. FURTHERMORE, LESSEE AND LESSOR HEREBY KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVE THE RIGHT EITHER MAY HAVE TO SEEK EXEMPLARY, PUNITIVE OR OTHER SPECULATIVE DAMAGES FROM THE OTHER AND ANY OF THE OTHER'S AFFILIATES, OFFICERS, DIRECTORS OR EMPLOYEES OR ANY OF THEIR SUCCESSORS WITH RESPECT TO ANY AND ALL ISSUES PRESENTED IN ANY ACTION, PROCEEDING, CLAIM OR COUNTERCLAIM BROUGHT BY EITHER PARTY AGAINST THE OTHER OR ANY OF THE OTHER'S AFFILIATES, OFFICERS, DIRECTORS OR EMPLOYEES OR ANY OF THEIR SUCCESSORS WITH RESPECT TO ANY MATTER ARISING OUT OF OR IN CONNECTION WITH THIS LEASE OR ANY DOCUMENT CONTEMPLATED HEREIN OR RELATED HERETO. THE WAIVER BY LESSEE AND LESSOR OF ANY RIGHT THEY MAY HAVE TO SEEK EXEMPLARY, PUNITIVE OR OTHER SPECULATIVE DAMAGES HAS BEEN NEGOTIATED BY THE PARTIES HERETO AND IS AN ESSENTIAL ASPECT OF THEIR BARGAIN.

55. **Lender's Rights.** Lessee acknowledges and agrees that (i) Lessor has collaterally assigned all of its right, title and interest under this Lease to Lender pursuant to the Loan Documents and (ii) upon the exercise of Lender's remedies set forth in such Loan Documents, all of the rights, powers and privileges of Lessor shall be deemed the rights, powers and privileges of Lender and Lender shall be entitled to exercise all of the rights and remedies of "Lessor" under this Lease. Lessee hereby consents to, and no further consent by Lessee shall be required for, any further assignment of rights of Lessor hereunder or in connection with any transfer by Lender. All notices, certificates, reports or other information required to be delivered to Lessor under this Lease shall be delivered simultaneously to Lender in accordance with the provisions of Section 29. Notwithstanding any provision herein to the contrary, the collateral assignment of this Lease to Lender shall not be deemed to create any obligation of or liability for Lender.

56. **Document Review.** In the event Lessee makes any request upon Lessor requiring Lessor or the attorneys of Lessor to review and/or prepare (or cause to be reviewed and/or prepared) any documents, plans,

specifications or other submissions in connection with or arising out of this Lease, then Lessee shall (x) reimburse Lessor upon demand therefor for all out-of-pocket costs and expenses incurred by Lessor in connection with such review and/or preparation, including, without limitation, reasonable attorneys' fees, and (y) pay Lessor a reasonable processing and review fee.

57. **OFAC Laws and Regulations.** Lessee shall immediately notify Lessor in writing if any individual or entity owning directly or indirectly any interest in any of the Lessee Parties or any director, officer, member, manager or partner of any of such holders is an individual or entity whose property or interests are subject to being blocked under any of the OFAC Laws and Regulations or is otherwise in violation of any of the OFAC Laws and Regulations, or is under investigation by any governmental entity for, or has been charged with, or convicted of, drug trafficking, terrorist-related activities or any violation of Anti-Money Laundering Laws, has been assessed civil penalties under these or related laws, or has had funds seized or forfeited in an action under these or related laws; provided, however, the covenant contained in this sentence shall not apply to any Person to the extent that such Person's interest is in or through a U.S. Publicly-Traded Entity.

58. **Substitution.** Subject to the fulfillment of all of the conditions set forth in this Section, from and after [month after the month in which the Effective Date occurs] 1, 2017, Lessee shall have the right to substitute a property (the "Substitute Property") for any Property (each, a "Substitution").

The Substitution of a Substitute Property for a Property (the "Withdrawn Property") shall be subject to the fulfillment of all of the following terms and conditions:

(a) The appraised fair market value of the Substitute Property shall be at least equal to the greater of (i) the appraised fair market value of the Withdrawn Property at the time of commencement of this Lease, or (ii) the appraised fair market value of the Withdrawn Property at the time of the Substitution, as evidenced by an MAI appraisal prepared by an independent appraiser acceptable to Lessor and Lender and dated no more than forty-five (45) days prior to the Substitution.

(b) The remaining useful life of the Substitute Property shall be at least equal to the remaining useful life of the Withdrawn Property at the time of the Substitution, as evidenced by an MAI appraisal prepared by an independent appraiser acceptable to Lessor and Lender and dated no more than forty-five (45) days prior to the Substitution.

(c) No Event of Default and no event that, with the passage of time or the giving of notice or both, would become an Event of Default shall have occurred and be continuing under this Lease either at the time of the request for the proposed Substitution or on the date of the Substitution.

(d) Lessee shall provide Lessor with written notice of the prospective Substitution not less than sixty (60) days before the date on which such Substitution is sought to be effected.

(e) The Substitute Property must be a property as to which Lessor will hold fee title.

(f) Lessor and Lessee shall amend this Lease to include the Substitute Property and remove the Withdrawn Property.

(g) Lessee shall be required to accept the Substitute Property in its "as is" condition.

(h) Lender shall consent to the Substitution, and Lessee shall satisfy the requirements of Lender, including, without limitation, with respect to an opinion or opinions of counsel from a nationally recognized law firm (i) to the effect that (A) the Substitution does not violate any, and is in compliance with all, REMIC Provisions, will not endanger the status of the REMIC trust as a REMIC, or result in the imposition of a tax upon the REMIC trust (including, without limitation, the tax on prohibited transactions as defined in Section 860F(a)(2) of the Tax Code and the tax on contributions to a REMIC set forth in Section 860G(d) of the Tax Code), (B) the Substitution will not result in a gain recognition event to any Lender, and (C) the Substitution does not constitute a fraudulent conveyance under applicable bankruptcy

and insolvency laws, and (ii) with respect to such other matters as Lender may reasonably require. "Tax Code" shall mean the Internal Revenue Code of 1986, as amended from time to time. "REMIC" shall mean a "real estate mortgage investment conduit" within the meaning of the Tax Code. "REMIC Provisions" shall mean the provisions of the federal income tax law relating to REMICs, which appear at Sections 860A through 860G of the Tax Code, and any related provisions and proposed, temporary and final Treasury regulations and published rulings, notices and announcements promulgated thereunder, as the foregoing may be in effect from time to time.

(i) Lessee shall cause to be delivered to Lessor and Lender an opinion letter from a nationally recognized law firm, in form and content satisfactory to Lessor and Lender, relating to the (i) due authorization, execution and delivery of the deed referenced in clause (o)(2) below and the Lease amendment referenced in clause (f) above, and (ii) the enforceability of the Lease amendment referenced in clause (f) above.

(j) Lessee shall be responsible for, and shall indemnify the Indemnified Parties against, any adverse tax consequence to Lessor and/or Lender with respect to such Substitution.

(k) The Substitute Property shall have been open for business as a Permitted Concept for not less than twelve (12) months and shall have a store sales history that is not less favorable than the store sales history for the Withdrawn Property. The Substitute Property shall be in a location that is acceptable to Lessor and Lender and in an area with equal or better market characteristics and locational attributes (including, without limitation, submarket strength, population, and accessibility) as the Withdrawn Property and being in a submarket that is substantially the same size as the submarket of which the Withdrawn Property was a part.

(l) The Person transferring the Substitute Property to Lessor shall be solvent, and the Substitute Property shall be transferred to Lessor in an arm's length transaction.

(m) At the closing of the Substitution, Lessor's right, title and interest in the Withdrawn Property shall be conveyed to such Person (other than an Affiliate of Lessor) designated by Lessee by a special warranty deed in substance (with respect to warranties) substantially similar to the deed delivered to Lessor with respect to the Withdrawn Property and subject to all matters of record, any state of facts a current and accurate survey would show and the lien of any taxes then affecting the Withdrawn Property. The Withdrawn Property shall be conveyed in its "as-is" condition.

(n) Lessee shall have paid or reimbursed Lessor, Lender, and the Rating Agencies (if the Loan is part of a Secondary Market Transaction) for, concurrently with the effecting of such Substitution, all reasonable out-of-pocket costs and expenses including, without limitation, reasonable attorneys' fees, incurred by Lessor and Lender in connection with the Substitution, and Lessee shall have paid all recording charges, filing fees, taxes and other expenses (including, without limitation, mortgage, intangible and transfer taxes) payable in connection with the Substitution. "Secondary Market Transaction" shall mean (a) any sale of the Loan Documents to one or more investors as a whole loan, (b) a participation of the Loan to one or more investors, (c) any deposit of the Loan Documents in an entity that may sell certificates or other instruments to investors evidencing an ownership interest in the assets of such entity, or (d) any other sale or transfer of the Loan or any interest therein to one or more investors. "Rating Agency" or "Rating Agencies" shall mean, if any, one or more of Standard & Poor's Ratings Services, a division of The McGraw-Hill Companies, Inc., Moody's Investor Services, Inc., Fitch Ratings Inc., or any other rating agency that has rated the Loan, the Loan Documents or the REMIC trust or any other entity in which the Loan and the Loan Documents have been placed.

(o) Lessee shall cause to be delivered to Lessor and Lender, without any cost or expense to either such party:

(1) an ALTA extended coverage title insurance policy from a national title insurance company reasonably acceptable to Lessor and Lender (a lender's policy and an owner's policy in such ALTA form that Lessor and Lender may select, subject to the

availability of such form in the state in which the Substitute Property is located), with any endorsements Lessor and/or Lender may reasonably require, insuring (A) Lender and its successors and assigns in an amount equal to the Loan amount for the Withdrawn Property, which policy shall provide that the mortgage securing the Loan constitutes a first lien or charge upon the Substitute Property subject only to such items that are approved in writing by Lender, and (B) Lessor, in the amount equal to the appraised value of the Substitute Property, insuring Lessor's fee interest in the Substitute Property subject only to such exceptions as shall have been approved in writing by Lender and Lessor, as applicable, in their sole discretion;

(2) a special warranty deed, subject only to such exceptions as shall have been approved in writing by Lessor in its sole discretion, conveying fee title to the Substitute Property executed and delivered in favor of Lessor and in substance (with respect to warranties) substantially similar to the deed delivered to Lessor with respect to the Withdrawn Property;

(3) a Phase I environmental assessment report and, if applicable, a Phase II environmental assessment report, from a nationally recognized environmental consultant approved by Lessor and Lender, dated not more than forty-five (45) days prior to the date of the proposed Substitution, together with a reliance letter from the environmental consultant in favor of Lender, Lessor and their respective successors and assigns, which shall conclude that the Substitute Property does not contain any Hazardous Materials (except for such items that are used in the ordinary course of Lessee's business, in Permitted Amounts and in full compliance with all applicable laws and regulations and at levels that do not impose any clean-up liability or obligation) or any recognized environmental conditions. If required by Lessor or Lender, Lessee shall obtain an environmental insurance policy for the Substitute Property from a carrier, in an amount, and upon terms, satisfactory to Lessor and Lender;

(4) an as-built survey of the Substitute Property certified to Lender, Lessor and the issuer of the title policy by a registered land surveyor licensed in the state in which the Substitute Property are located and acceptable to Lessor and Lender, dated a date not earlier than thirty (30) days prior to the date of Substitution, in the same form and having the same content as the certification of the survey for the Withdrawn Property, prepared in accordance with the then current Minimum Standard Detail Requirements for ALTA/ACSM Land Title Surveys. Such survey shall reflect the same legal description (metes and bounds) as the one contained in the title policy, and shall contain a certification that the Substitute Property is not located in a flood zone;

(5) a zoning opinion or letter from the local zoning authority confirming that the Substitute Property is a legal conforming, or legal nonconforming, use, and is not in violation of any zoning laws;

(6) a permanent, unconditional certificate of occupancy for the Substitute Property;

(7) valid certificates of insurance indicating that the requirements for the policies of insurance required under this Lease and the Loan Documents have been satisfied with respect to the Substitute Property, together with evidence of payment of all premiums for the existing policy period;

(8) a physical condition report in a form recognized and approved by Lessor and Lender from a nationally recognized engineering consultant approved by Lessor and Lender, dated not more than forty-five (45) days prior to the date of the proposed Substitution, together with a reliance letter from the engineering consultant in favor of Lender, Lessor and their respective successors and assigns, stating that the

Substitute Property and its use complies with all applicable requirements of law (including building and subdivision laws), and that the Substitute Property is in good condition and repair and is free of damage or waste or deferred maintenance items;

(9) an estoppel certificate certified to Lessor and Lender stating that (A) this Lease, as amended, is in full force and effect and is a valid and binding obligation of Lessee, (B) there are no defaults under this Lease, as amended, (C) Lessee has no defense or offset to the payment of rent under this Lease, as amended, (D) the dates of lease commencement, rent commencement and lease expiration, (E) no rent has been paid for more than one month in advance, and (F) Lessor has satisfied all requirements with respect to the delivery of the Substitute Property and Lessee is in occupancy thereof;

(10) if the Substitute Property is to be encumbered by Loan Documents, a subordination, non-disturbance and attornment agreement with respect to this Lease, as amended, substantially in the form delivered in connection with the Withdrawn Property;

(11) a release and indemnification of the Indemnified Parties for, from and against all claims and liability relating to the Withdrawn Property;

(12) the appraisals contemplated by clauses (a) and (b) above, together with a reliance letter from the appraiser in favor of Lender, Lessor and their respective successors and assigns; and

(13) such other and further approvals, opinions, documents and information in connection with the Substitution as Lessor or Lender (or the Rating Agencies if the Withdrawn Property is subject to a Loan that is part of a Secondary Market Transaction) may reasonably request.

(p) Lessor and Lender, and their respective agents, shall be provided with full access to the Substitute Property in order to conduct their inspection of the Substitute Property and perform their due diligence.

(q) All of Lessee's representations and warranties under this Lease with respect to the Withdrawn Property shall be true and correct with respect to the Substitute Property both at the time of the request for the proposed Substitution and as of the date of the Substitution.

(r) Lessor shall have either consented to, or, in Lessor's sole discretion, rejected the proposed Substitution, for any reason, including, but not limited to, an adverse impact or effect on Lessor's tax status.

59. ***Limitation on Indebtedness.*** Lessee shall not incur any indebtedness if the incurrence of such indebtedness would result in the FCCR for Lessee and its consolidated subsidiaries being below 1.20:1 for the immediately preceding twelve-month period, determined on a pro forma basis giving effect to the proposed indebtedness as if such indebtedness was incurred on the first day of such twelve-month period.

60. ***State Specific Provisions.*** The provisions and/or remedies which are set forth on Schedule I shall be deemed a part of and included within the terms and conditions of this Lease.

IN WITNESS WHEREOF, Lessor and Lessee have entered into this Lease as of the Effective Date.

LESSOR:

_____,
a Delaware _____

By: _____, a
_____, its

By: _____
Name: _____
Title: _____

LESSEE:

_____,
a Delaware _____

By: _____
Name: _____
Title: _____

[illegible]

The foregoing instrument was acknowledged before me on _____, 2014 by _____, _____, a _____, the _____ of _____, a Delaware _____, on behalf of the _____.

Notary Public

My Commission Expires

STATE OF _____)
) SS.
COUNTY OF _____)

The foregoing instrument was acknowledged before me on _____, 2014 by _____, _____ of _____, a _____, on behalf of the _____.

Notary Public

My Commission Expires

EXHIBIT A
PROPERTIES

Address

Store Number

EXHIBIT A-1
LEGAL DESCRIPTION OF PROPERTIES

SCHEDULE I
STATE SPECIFIC PROVISIONS

SCHEDULE II
LIMITED REMEDY

Notwithstanding anything to the contrary contained in the Lease or any agreement or instrument entered into in connection therewith, with respect to a Limited Remedy Default (as defined below), the aggregate amount Lessee shall be required to pay to Lessor (pursuant to Section 24.B of the Lease or otherwise under the Lease) from and after the date of the occurrence of such Limited Remedy Default (the "Occurrence Date") with respect to Base Annual Rental and Additional Rental shall be limited to the sum of (i) the present value as of the Occurrence Date, discounted at the rate per annum of [twelve and one-half (12.5)]³ percent, of all Base Annual Rental reserved hereunder for the unexpired portion after the Occurrence Date of the Lease Term as if the Lease had not expired or been terminated, (ii) any amounts of Additional Rental which are due and payable or have accrued under the Lease through the Occurrence Date, and (iii) any amounts of Additional Rental which are due and payable or have accrued under the Lease after the Occurrence Date while Lessee remains in possession of the Properties after any Limited Remedy Default that relates to insurance, utilities, repairs, maintenance, environmental maintenance, remediation and compliance and other routine and customary costs and expenses of operating and maintaining the Properties. For clarification, the foregoing shall not limit (i) any amounts payable by Lessee with respect to Base Annual Rental or Additional Rental which has accrued under the Lease prior to the Occurrence Date; (ii) any remedies which Lessor shall be entitled to exercise under Section 24.B of the Lease or as otherwise set forth in the Lease if any Event of Default that is not a Limited Remedy Default has occurred; (iii) the obligations of Lessee to indemnify the Indemnified Parties pursuant to the Lease, including the provisions of Section 19 of the Lease, with respect to any Event of Default that is not a Limited Remedy Default; and/or (iv) any other rights and remedies of Lessor under Section 24.B of the Lease that do not involve (a) collection of amounts or (b) realization upon any security interest in Lessee's Personal Property (including, without limitation, realization upon any common-law or statutory lien, if any, on Lessee's Personal Property).

For purposes of this Schedule II, the term "Limited Remedy Default" shall mean an Event of Default under Section 24.A(xi) of the Lease.

³ Rate to be inserted will be GGC incremental borrowing rate, but not to exceed 15%

SCHEDULE 6G

Property Condition Report Information

1. Property Condition Report prepared by EMG in anticipation of Lessor's acquisition of the Properties and the execution of this Lease.